



CITY OF PHILADELPHIA
Office of City Representative and Special Events
REQUEST FOR PROPOSALS
FOR
Special Event Permitting Software Solution
02/17/2026

Deadline for Receipt of Proposals:	03/17/2026, 5:00 PM (Local Philadelphia Time)
Pre-Proposal Meeting: (Optional)	02/25/2026, 11:00 AM (Local Philadelphia Time – Teams Link)
Deadline for Questions:	03/11/2026, 5:00 PM (Local Philadelphia Time)

CHERELLE L. PARKER, Mayor
Jazelle Jones, City Representative and Director of Special Events

City of Philadelphia
Office of City Representative and Special Events

Request for Proposals
for
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02/17/2026

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1 General Information

1.1 Background and General Scope of Work

Overview of the Office of the City Representative and Special Events

The City of Philadelphia, through its Office of the City Representative and Special Events (OCRSE) is seeking proposals from vendors regarding commercial off-the-shelf (COTS) or configurable permitting software solutions to modernize and streamline the special event permitting process. This Request for Proposal (RFP) aims to review available solutions that can significantly improve the efficiency of the City's event permitting operations, enhance the applicant experience, and improve cross-departmental coordination.

OCRSE manages approximately 1,700 special event applications annually and is the central hub for permitting, licensing, insurance, and coordination of City services for public events in Philadelphia. With major global events such as the MLB All-Star Game and the FIFA World Cup scheduled for 2026, OSE anticipates a surge in permit requests and a corresponding need for enhanced operational efficiency. This project was identified as a strategic goal for OCRSE and is part of the **PHL Open for Business Executive Order 10-2024**, an interdepartmental initiative to make Philadelphia a more business-friendly environment for businesses of all sizes and in all neighborhoods.

Project Background and Current State

Currently, the Special Events application is an eight-page PDF that all applicants must complete, regardless of event type. Although the application recognizes eight distinct event types, each requiring different levels of information, the uniform format requires many applicants to answer questions that are not applicable to their event. Some event types also necessitate submitting additional forms and/or applications to other City departments, further adding to the complexity of the process. Once completed, applicants must email the PDF to a general inbox.

To resolve these identified inefficiencies, the City is seeking a permitting software solution designed to enhance application intake and processing capabilities, to streamline user interactions with City processes, and to create a centralized internal workflow and task management system to streamline coordination and collaboration across departments. The primary goal of this project is to implement an efficient online permitting system and database that provides internal and external dashboards for accessing relevant information throughout the permitting process. The system should also generate detailed reports and support applicant data analysis.

The system will be installed on existing City equipment and networks. Proposals must: (1) specify the performance standards (e.g., throughput, processing volumes, response times) that the proposed solution will meet when deployed on the City's current environment as described in this RFP, and (2) identify any upgrades to City equipment or networks the Applicant believes are necessary to achieve satisfactory performance, including detailed specifications for such upgrades and a clear description of the performance standards the system will meet both with and without the recommended upgrades.

No computer hardware or other equipment, and no network or computer installation services (such as cabling or physical installation of equipment) will be purchased under any contract resulting from this Request for Proposals. The City will purchase such equipment and services separately, through its normal procurement process.

1.2 General Statement of Proposal Requirements

OCRSE is seeking a technology solution that will:

- Streamline application intake and processing to reduce overall processing times and eliminate inefficiencies;
- Centralize workflows across multiple City departments to improve internal coordination;
- Enhance communication with applicants by offering real-time status updates and reducing reliance on manual email communication;
- Simplify the applicant experience by creating a single access point for applicants, reducing the need to navigate between various City agencies;
- Integrate payment processing systems for a seamless payment experience; and
- Generate robust data and reports to monitor key performance indicators (KPIs) and support data-driven decision-making.

Applicants' proposed scope of work should state in detail how they will fulfill each of the requirements listed above and outlined in Appendix A. As part of their proposal, applicants should also respond to the following questions:

- Permitting Software Solutions: Is your software COTS or configurable?
- Implementation, Training, and Professional Services: What is your approach to implementation, training, and upfront setup? Do you offer professional services for these areas?
- Interoperability: How does your system integrate with existing City systems?
- Cost Structure: What are the licensing and maintenance costs associated with your system?
- Real-Time Engagement: What tools do you offer for real-time applicant engagement?

Detailed requirements for the System and/or services sought by this RFP are provided in Appendix A, *Detailed Project Requirements*.

1.3 Proposal Submission Date; Anticipated Procurement Schedule

The date for submitting Proposals pursuant to this RFP (the "Submission Date") is as provided below. Proposals must be submitted as provided in Section 3.1.5, *Proposal Submission Requirements*, by the time on the Submission Date indicated below.

Date

Tuesday February 17, 2026

Activity

Issue Request for Proposals.

**Wednesday, February 25, 2026 –
11:00 AM (Local Philadelphia
Time)**

Optional Pre-Proposal Meeting
(Microsoft Teams). Location: [[Teams link](#)].

**Wednesday, March 4, 2026 – 5:00
PM (Local Philadelphia Time)**

Submit questions/requests for
clarification/information to Primary
Contact, in writing.

Wednesday, March 11, 2026

Responses to Questions Posted.

**Tuesday, March 17, 2026 – 5:00
PM (Local Philadelphia Time)**

Proposal Submission Deadline:
Submit Proposals on eContract Philly.

Friday, May 1, 2026

Notice of Intent to Contract.

Friday, May 15, 2026

Project start (anticipated).

These dates are estimates only and the City reserves the right, in its sole discretion, to alter this schedule as it deems necessary or appropriate. Notice of changes in the Pre-Proposal Meeting date/time or location, the due date/time for submission of Applicant questions, and the date/time for Proposal Submission will be posted on the City’s website at <https://philawx.phila.gov/econtract/> (“eContract Philly”). The other dates/times listed may be changed without notice to prospective Applicants.

Applicants to this RFP (each an “Applicant” and collectively “Applicants”) must submit their responses and applications electronically on eContract Philly and in accordance with Section 3.1.5, *Proposal Submission Requirements*. Submissions will not be considered unless the Applicant has proceeded through the eContract Philly system. For more information, please consult the reference materials found on the website, e-mail econtractphilly@phila.gov or call 215-686-4914. **Applicants who have failed to file complete applications to the correct opportunity number through the eContract Philly online application process prior to the closing date and time will *not* be considered for the contract.** The City encourages Applicants to start and complete their online applications as early as possible.

1.4 City’s Primary Contact

The name, address, and contact information for the City’s Primary Contact for this RFP are as follows:

*Natalie Faragalli
Office of City Representative and Special Events
1515 Arch Street, 11th Floor
Philadelphia, PA 19102
E-mail address: natalie.faragalli@phila.gov*

All questions, requests for clarification, and requests for additional information regarding this RFP must be submitted in writing by the deadline set forth in Section 1.3. No oral response by any employee or agent of the City shall be binding on the City or shall, in any way, constitute a

commitment by the City. If an Applicant finds any inconsistency or ambiguity in the RFP, the Applicant is requested to notify the City by the questions due date set forth in Section 1.3.

1.5 Compliance with Chapter 17-1400 of The Philadelphia Code

Under any contract resulting from this RFP, the successful Applicant shall be required to comply with the terms and conditions set forth in Appendix G, *Provisions Required by Chapter 17-1400 of the Philadelphia Code*, which shall be incorporated into the contract.

2 RFP Requirements and Conditions

2.1 Fixed Price Proposal Required

Cost proposals for the **Special Event Permitting Software Solution** must be “fixed price” proposals. The proposed price must include all costs that will be incurred for the purchase and implementation of the System, including, but not limited to, costs for the following: integration and project management; software development; software testing; installation and implementation of software; maintenance for software (including middleware, database, communication, operating system, and other software); maintenance for hardware if required under the RFP; software; training services if required under the RFP; and all other work proposed. If an Applicant offers options and/or alternates that are not included in the fixed price for the proposed System, the Applicant must provide for each such option/alternate the following information:

- A detailed description of the option/alternate (including, but not limited to, all features and functionality that will be unavailable in the base System if the option/alternate is not purchased);
- A full explanation of the rationale for not incorporating such functionality in the base System;
- Detailed cost information for each option/alternate, in accordance with the cost proposal requirements of the RFP.

The cost proposal must identify, by separate line item, the cost of each item of software, services, and other work to be furnished as part of the System. The City reserves the right, in its sole discretion, to reject without evaluation any Proposal that does not identify each item of the work by line item, and any Proposal that does not provide a fixed price to perform the proposed work (including, but not limited to, proposals to perform the work on a “time and materials” or “cost-plus” basis).

2.2 Type of Solution Sought

The City seeks to implement a “state of the art” Special Events Permitting Software System, which will satisfy all of the City’s current requirements, as specified in this RFP, yet be easy to maintain and easy and inexpensive upgrade and expand to satisfy future needs for additional functionality and/or processing capacity. The City requests that Applicants offer their “best” solutions that will satisfy the requirements set forth in this RFP. The City will consider all solutions of all types, including solutions that use “off-the-shelf” software packages, custom software solutions systems, or a combination of “off the shelf” and custom software.

2.3 [RESERVED]

2.4 Maintenance and Support; Warranty; Training; Source Code

2.4.1 Maintenance and Support Services

The Proposal must include a section describing the maintenance and support services to be provided under the contract resulting from the RFP. A minimum of one (1) year of maintenance/support services, commencing on final acceptance of the System and project by the City, must be included in the fixed price cost proposal, with the price identified in a separate line item. The City expects that maintenance and support will be furnished on a “turnkey” basis – i.e. the successful Applicant will itself be contractually responsible for all maintenance and support services for all elements of the System, including but not limited to all software and any data transport services that are required under the contract, and will be the single point of contact for service and support. Applicants are requested to price four additional years of maintenance and support, with the price for each of years two through five identified in a separate line item. The City expects that the successful Applicant will guarantee the availability of maintenance and support services for application software, on the foregoing “turnkey” basis, for a minimum of five (5) years from final acceptance of the System. Proposals must include a description of the proposed services, stating whether the Applicant will comply with the foregoing terms, and describing the Applicants problem resolution procedures – including problem severity classifications, response times and “fix” times for each level of severity, and the escalation procedures (including on-site service) that will apply where resolution is not immediately achieved.

2.4.2 Warranty

The City requires a warranty from the successful Applicant that covers the entire System, including all software, other deliverables, design, implementation/integration and other services required under the contract resulting from the RFP and ensures compliance with all specifications, including performance standards, in the contract. The warranty must be on a “turnkey” basis – i.e. the successful Applicant must itself be contractually responsible for all warranty obligations and must be the single point of contact for service under the warranty. The warranty period must be a minimum of one (1) year, commencing on final acceptance of the System and project by the City. The price of such a one-year warranty must be included in the fixed price cost proposal, with the price identified in a separate line item. The City strongly prefers a two year or greater warranty period and requests that Applicants price two additional warranty years, with the price for each additional warranty year identified in a separate line item of the cost proposal. Any premium charged for a warranty year – i.e. any charge in addition to the price for a concurrent year’s maintenance and support services – should be identified in the cost proposal. For additional terms and conditions regarding the warranty, Applicants are directed to review Article VII of the Provider Agreement for Implementation Services, included as Appendix L. to this RFP.

2.4.3 Training

The City requires the user training and other training services described in Appendix E, *Training Requirements*, in accordance with the conditions there provided. Proposals should describe, and in the Cost Proposal provide line item costs for, the training that the Applicant is capable of providing, the training methodologies and materials to be used, and the Applicant’s experience in furnishing

the kinds of training requested. Proposals should state clearly, in the Requirements Compliance Certification, whether each type of training requested will be offered in accordance with the requirements of Appendix E.

2.4.4 Software Source Code

The City expects delivery and ownership of the source code, including complete documentation and specifications, for custom software developed and furnished specifically for the System under any contract resulting from this RFP. For software that is proprietary to the successful Applicant or to third parties, the City expects that source code, including complete documentation and specifications, will be deposited in escrow, at no expense to the City and on terms satisfactory to the City, with regular updates of the deposited code and documentation to reflect enhancements, upgrades, updates, and corrections to the software. For additional terms and conditions regarding the software source code, Applicants are directed to review Article X of the Provider Agreement for Implementation Services, included as Appendix L to this RFP.

2.5 Responsiveness

Proposals must satisfy all requirements set forth in this RFP. Any Proposal that does not adhere strictly to RFP requirements may, in the sole discretion of the City, be rejected, as not responsive to the RFP, without further consideration. Proposals will be evaluated, in part, according to whether the Applicant meets the qualifications described in the RFP and submits a Proposal complying with all RFP requirements. The City reserves the right, in its sole discretion, to determine whether any deviation(s) from or exception(s) to RFP requirements make the Proposal non-responsive or otherwise unacceptable such that the Proposal will be rejected without further consideration.

2.6 Disclaimer

This RFP and the process it describes are proprietary to the City and are for the sole and exclusive benefit of the City. This RFP is not binding on the City. No other party, including any Applicant to this RFP or future Applicant to any RFP that may be issued by the City, is intended to be granted any rights hereunder. Proposals and other materials submitted in response to this RFP, whether written or verbal and including, without limitation, ideas of Proposers elicited in response to the RFP, shall become the sole and absolute property of the City upon submission or communication, and the City shall have title thereto and unrestricted use thereof. The City shall have the right to disclose the Proposals, materials and any ideas to any person or entity including, employees of the City, its consultants and contractors, and authorized agents, as required to carry out this RFP procurement. Any such Proposal, materials, and ideas may be publicly disclosed by the City or any authorized agent of the City, for any reason the City, in its sole discretion, deems appropriate, or pursuant to the Pennsylvania Right To Know Act or other applicable law. The Proposer acknowledges and agrees that the City and its authorized agents shall have the foregoing right of public disclosure notwithstanding any notice or statement by the Proposer (whether made in the Proposal or otherwise) asserting the confidential or proprietary nature of the Proposal or of any materials submitted or ideas elicited in response to the RFP.

2.7 Publicity

All publicity (including, but not limited to, news releases, news conferences, and commercial advertising) relating to this RFP and/or the services or products sought by this RFP and/or any contract awarded pursuant to this RFP shall require the prior written approval of the .

2.8 Applicants Restricted

No Proposal shall be accepted from, or contract awarded to, any City employee or official, or any firm in which a City employee or official has a direct or indirect financial interest. No Applicant may be the prime contractor or prime Applicant for more than one Proposal submitted pursuant to this RFP. Entities that are legally related to each other or to a common entity may not submit separate Proposals as prime contractors or prime Applicants. Any Proposal may be rejected that, in the City's sole judgment, does not comply with these conditions. Nothing contained in this RFP is intended to preclude a Proposal by a system integrator that proposes to perform the substantive work proposed through subcontractors.

2.9 [RESERVED]

2.10 Acceptance of the Terms and Conditions of This RFP

All Proposals submitted are subject to the terms and conditions set forth in this RFP. The Applicant, by submitting its Proposal, expressly acknowledges and agrees to all terms, conditions and requirements contained in this RFP.

2.11 Proposal Submission, Evaluation and Selection

2.11.1 General

The City reserves the right, in its sole discretion, to reject all Proposals and reissue this RFP at any time prior to execution of a final contract; to require, in any RFP for similar products and/or services that may be issued subsequent to this RFP, terms and conditions that are substantially different from the terms and conditions set forth in this RFP; and/or to cancel this RFP with or without issuing another RFP.

2.11.2 Rights and Options Reserved

The City reserves and in its sole discretion may, but shall not be required to, exercise the following rights and options with respect to the Proposal submission, evaluation and selection process under this RFP:

- (a) To reject any Proposals if, in the City's sole discretion, the Proposal is incomplete, the Proposal is not responsive to the requirements of this RFP (see "Detailed Project Requirements" in the RFP appendices), the Applicant does not meet the Qualifications set forth in the RFP, or it is otherwise in the City's best interest to do so;
- (b) To supplement, amend, substitute or otherwise modify this RFP at any time prior to selection of one or more Applicants for negotiation and to cancel this RFP with or without issuing another RFP;

- (c) To accept or reject any or all of the items in any Proposal and award the contract(s) in whole or in part if it is deemed in the City's best interest to do so;
- (d) To reject the Proposal of any Applicant that, in the City's sole judgment, has been delinquent or unfaithful in the performance of any contract with the City or with others, is financially or technically incapable or is otherwise not a responsible Applicant;
- (e) To reject as informal, non-responsive, or otherwise non-compliant with the requirements of this RFP any Proposal which, in the City's sole judgment, is incomplete, is not in conformity with applicable law, is conditioned in any way that is unacceptable to the City, deviates from this RFP and its requirements, contains erasures, ambiguities, or alterations, or proposes or requires items of work not called for by this RFP;
- (f) To waive any informality, defect, non-responsiveness and/or deviation from this RFP and its requirements that is not, in the City's sole judgment, material to the Proposal;
- (g) To permit or reject at the City's sole discretion, amendments (including information inadvertently omitted), modifications, alterations and/or corrections of Proposals by some or all of the Applicants following Proposal submission;
- (h) To request that some or all of the Applicants modify Proposals based upon the City's review and evaluation;
- (i) To request additional or clarifying information or more detailed information from any Applicant at any time, before or after Proposal submission, including information inadvertently omitted by the Applicant;
- (j) To inspect and otherwise investigate projects performed by the Applicant, whether or not referenced in the Proposal, with or without the consent of or notice to the Applicant;
- (k) To conduct such investigations with respect to the financial, technical, and other qualifications of each Applicant as the City, in its sole discretion, deems necessary or appropriate; and
- (l) To waive and/or amend any of the factors identified in the RFP as pertaining to the Applicant's qualifications.

2.11.3 Contract Negotiation and Award

The City reserves and in its sole discretion may, but shall not be required to, exercise the following rights and options with respect to the contract negotiation and award process resulting from this RFP:

The City reserves the right to enter into post-submission negotiations and discussions with any one or more Applicants regarding price, scope of services, and/or any other term of their Proposals, and such other contractual terms as the City may require, at any time prior to execution of a final contract. The City may, at its sole election, enter into simultaneous, competitive negotiations with multiple Applicants or negotiate with individual Applicants seriatim. Negotiations with Applicants may result in the enlargement or reduction of the scope of services, or changes in other terms that are material to the RFP and the submitted Proposals. In such event, the City shall not be obligated to inform other Applicants of the changes, or to permit them to revise their Proposals in light thereof, unless the City, in its sole discretion, determines that doing so is in the City's best interest.

In the event negotiations with any Applicant(s) are not satisfactory to the City, the City reserves the right to discontinue such negotiations at any time; to enter into or continue negotiations with other Applicants; to enter into negotiations with firms that did not respond to this RFP and/or to solicit new proposals from firms that did not respond to this RFP, including but not limited to negotiations

or proposals for components of the System, if any, that are deleted by the City from the successful Proposal or the contract resulting from it. The City reserves the right not to enter into any contract with any Applicant, with or without re-issue of the RFP, if the City determines that such is in the City's best interest.

2.11.4 Proposal Evaluation

Proposals the City determines, in its sole discretion, are responsive to the RFP will be reviewed by a selection committee designated by the City. The City, in its sole discretion, may require any Applicant to make one or more presentations of its Proposal to the selection committee, in City offices, at no cost to the City, addressing its ability to satisfy the requirements of this RFP. The City shall not be required, however, to permit any Applicant to make such a demonstration.

Cost to the City is a material factor, but not the sole or necessarily the determining factor in Proposal evaluation. The City may, in its sole discretion, award a contract resulting from this RFP to a person or entity other than the responsible and qualified Applicant submitting the lowest price. The contract will be awarded to the Applicant whose Proposal the City determines, in its sole discretion, is the most advantageous to the City and in the City's best interest.

Proposal evaluation will include evaluation of the Applicant's qualifications, based on Volume 1 of the Proposal and such other information and investigations as the City deems necessary and appropriate; and evaluation of the Applicant's technical solutions and Cost Proposals as set forth in Volume 2 of the Proposal. The City, in its sole discretion, may, but shall not be required to, reject without further consideration the Proposal of any Applicant that has not demonstrated, in the City's sole judgment, that it satisfies the qualifications criteria provided in the RFP. The City reserves the right, in its sole discretion and without notice to Applicants, to modify this evaluation procedure as it may deem to be in the City's interest.

Evaluation factors to be considered by the City include, but are not limited to, the following (no particular order of importance, weighting, or other priority is assigned to these factors or reflected by their order in the list):

- 1) Superior ability or capacity to meet particular requirements of contract and needs of City Department and those it serves -
 - a) Project understanding and soundness of proposed project methodology, including but not limited to the detail and accuracy of the proposed scope and statement of work and implementation plan;
- 2) Eligibility under Code provisions relating to campaign contributions;
- 3) Superior prior experience of Applicant and staff -
 - a) References provided by the Applicant, particularly from projects of similar complexity and scope;
 - b) Demonstrated ability to provide Services and Deliverables comparable to those requested in this RFP;
- 4) Superior quality, efficiency and fitness of proposed solution for City Department -
 - a) The impact of the proposed solution on the operations of the using department, and the demonstrated ability of the solution to enhance operational efficiency and effectiveness;
- 5) Superior skill and reputation, including timeliness and demonstrable results -

- a) The Applicant's financial and technical qualifications to perform the work required by the RFP, as presented in its Proposal and determined by any other investigations conducted or information obtained by the City;
- b) Commitment and ability to complete the project within the time frame specified in the Proposal;
- 6) Special benefit to continuing services of incumbent, such as operational difficulties with transition or needs of population being served;
- 7) Benefit of promoting long-term competitive development and allocation of experience to new or small businesses;
- 8) Lower cost;
- 9) Administrative and operational efficiency, requiring less City oversight and administration;
- 10) Anticipated long-term cost effectiveness;
- 11) Meets prequalification requirements as set forth in this RFP; and,
- 12) Applicant's certification of its Local Business Entity/Local Impact status pursuant to Executive Order 04-12.

2.11.5 Site Inspections

The City may, at its sole option, inspect the Applicant's work at one or more sites where the Applicant's or a proposed subcontractor's products are installed, or services have been provided. If a list of such sites is not required elsewhere in this RFP or included in its Proposal, the Applicant will promptly provide such a list upon written request by the City.

2.11.6 Prime Contractor Responsibility

All subcontractors will be subject to approval by the City. Prior to contract execution, the successful Applicant will be required to furnish the corporate or company name and the names of the officers and principals of all subcontractors. Notwithstanding any such approval by the City, the successful Applicant shall itself be solely responsible for the performance of all work set forth in any contract resulting from the RFP, and for compliance with the price and other terms provided in the contract. The successful Applicant shall cause the appropriate provisions of its Proposal and the contract to be inserted in all subcontracts.

The City's consent to or approval of any subcontract or subcontractor Proposed by an Applicant shall not create or purport to create any obligation of the City to any such subcontractor, or any form of contractual relationship or relationship of privity between the City and the subcontractor. Any Applicant who obtains such approval or consent of the City shall be required to insert a clause so providing in all subcontracts.

2.12 Responsibility for Proposal Costs

The Applicant shall be solely and fully responsible for all costs associated with the development, preparation, transmittal, and submission of any Proposal or material submitted in response to this RFP. The City may, in its sole discretion, ask selected Applicants to present their Proposal in person to the City's representatives at the City's offices, and the costs of such presentations, as well as the costs of any pilot implementation required by the City under Section 2.3, shall be solely the responsibility of the Applicant. The City assumes no contractual or other obligations as a result of the issuance of this RFP, the preparation or submission of a Proposal by an Applicant, the evaluation

of Proposals, the Applicant's conduct of presentations or pilot implementations, or the selection of any Applicant for further negotiations. There may be no claims whatsoever for reimbursement from the City or any of its consultants for such costs. All costs incurred by the Applicant during the selection process and during negotiations will be solely the responsibility of the Applicant.

2.13 [RESERVED]

2.14 Withdrawal or Modification of Proposals

Applicants may withdraw or modify their Proposals at any time prior to the Proposal Submission Date provided in Section 1.3, *Proposal Submission Date; Anticipated Procurement Schedule*, by written notice of withdrawal or written submission of the modification, signed in the same manner and by the same persons who signed the Proposal. Such written notice must be addressed to the City Primary Contact as specified in Section 1.4.

2.15 Contract Terms and Requirements

The terms and conditions that have been adopted by the City for the project(s) described in this RFP may be found in the Provider Agreement for Implementation Services, included as Appendix L. to this RFP and the General Provisions for Computer and Information Services available on eContract Philly (collectively, the Contract). Applicants are responsible to review all specifications, requirements, terms and conditions, insurance requirements, and other requirements therein.

To be responsive, Applicants must be prepared to enter into a contract with terms substantially similar to those in the Contract. An Applicant's failure to execute a contract substantially the same as the Contract may result in disqualification for future solicitations for this same or similar products/services. The City reserves the right, however, to require or negotiate different and/or additional terms and conditions in any final contract resulting from this RFP if, in the sole judgment of the City, it is in the best interest of the City to do so, without notice to other Applicants and without affording other Applicants any opportunity to revise their proposals based on such different or additional terms.

Submittal of a proposal is agreement to this condition. Applicants are to price and submit proposals to reflect all the specifications and requirements, in this RFP and terms and conditions substantially the same as those included in this RFP. Applicants may state for the City's consideration any objections to terms in the Contract in a separate section of the Proposal. Any such objection must identify the specific section(s) objected to, state the reason(s) for the objection, and propose alternative language or terms. Terms to which no objection is asserted will be presumed acceptable to the Applicant. The City may, in its sole discretion, evaluate proposals in part according to whether the Applicant so objects, and the number and type of objections asserted.

2.16 Document Preparation Fee

Pursuant to Chapter 17-700 of The Philadelphia Code, the successful Applicant must generally pay a contract preparation fee. Regulations promulgated by the City Solicitor currently establish the following schedule of fees for preparation of the initial contract and subsequent amendments, based upon the amounts involved and whether the successful Applicant is a for-profit or nonprofit entity:

<u>Amount of Contract or Amendment</u>	<u>For-Profit Fees</u>		<u>Non-Profit Fees</u>	
	<u>Contract</u>	<u>Amendment</u>	<u>Contract</u>	<u>Amendment</u>
\$0-\$30,000	\$50	\$50	\$50	\$50
\$30,001-\$100,000	\$200	\$170	\$100	\$85
\$100,001-\$500,000	\$500	\$340	\$200	\$170
\$500,001-\$1,000,000	\$900	\$520	\$300	\$260
Over \$1,000,000	\$1,500	\$1,000	\$500	\$500

In its discretion, the Law Department may grant a full or partial waiver of any of the above fees in exceptional cases for good cause shown, such as violation of a grant covenant. Governmental entities are exempt from the fees. The Law Department reserves the right to collect up to twice the stated fee if extensive negotiation is required to reach a final contract with the successful Applicant.

3 Proposal Requirements

3.1 Administrative Requirements

Applicants are expected to comply with all administrative requirements provided in this Section 3.1.

3.1.1 Mandatory Online Registration and Filing Requirements

You must apply online in order to be eligible for award of the non-competitively bid contract opportunity described in this RFP; proposals and any other related documents prepared in response to this RFP will not be considered unless they are filed to the correct contract opportunity established for this RFP (identified by opportunity number), within the prescribed time period, through eContract Philly, which can be accessed on the City's website at <https://philawx.phila.gov/econtract/> by clicking on eContract Philly.¹ The posting of this RFP on eContract Philly is also referred to as a Notice of Contracting Opportunity.

The City requires that any Applicant who establishes an account on eContract Philly and utilizes that account for the purpose of responding to a particular contract opportunity is the same individual or business entity that, if awarded the contract, will enter into and perform the resulting contract with the City. **Applicants MUST ensure that the company name and Tax Identification Number (TIN) with which they are registered on eContract Philly is the identical name and TIN under which they are submitting their application. Any deviation from this may result in the disqualification of the Applicant at the sole discretion of the City. If the Applicant wishes to apply for an opportunity using a name or TIN which is different from the registration account, the Applicant must register the new name and TIN with eContract Philly before submitting its application for the opportunity.** Except in the case of joint ventures, applications posted on eContract Philly from Applicants that purport to be filing an application on behalf of another individual or business entity will not be considered, even if the other business entity is an affiliate of the Applicant.

¹ The eContract Philly website is compatible with Internet Explorer, Google Chrome and Apple Safari; but the site is not presently compatible with Mozilla Firefox.

In the case of multiple business entities that if awarded a contract have formed, or intend to form a joint venture to perform the contract, a single business entity may file an application on behalf of all such business entities so long as (i) the filing business entity is or will be a member of the joint venture, (ii) the application is made in the name of the existing or proposed joint venture, (iii) documentation is submitted with the application identifying all business entities that comprise, or will comprise, the joint venture, and demonstrating a binding agreement among those business entities to perform the contract as the joint venture identified in the application (for a joint venture that has not yet been formed, documentation signed by each identified business entity evidencing a commitment to form the joint venture if awarded the contract is sufficient), and (iv) the non-filing business entities are eligible for award of a City contract and make the disclosures required by Chapter 17-1400 of the Philadelphia Code (described in greater detail below) within fourteen (14) days after the joint venture receives notice that it has been awarded the contract.

Pursuant to Chapter 17-1400 of the Philadelphia Code, Applicants and contractors are required to disclose their direct and indirect campaign contributions to political candidates and incumbents who are nominated, running for, or currently serving in, a local Philadelphia elected office and to political committees/parties that are operating in Philadelphia (state and federal campaign contributions are not included **unless** the subject of the campaign is also running for, or currently serving in a local Philadelphia elected office); any consultants used in responding to the RFP and contributions those Pursuant to Chapter 17-1400 of the Philadelphia Code, Applicants are required to disclose their direct and indirect campaign contributions to political candidates and incumbents who are nominated, running for, or currently serving in, a local Philadelphia elected office and to political committees/parties that are operating in Philadelphia (state and federal campaign contributions are not included **unless** the subject of the campaign is also running for, or currently serving in a local Philadelphia elected office); any consultants used in responding to the RFP and contributions those consultants have made; prospective subcontractors; and whether Applicant or any representative of Applicant has received any requests for money or other items of value or advice on particular firms to satisfy contract goals from City employees. This information, as well as a proposal or any other response document required, is part of the online application. For more information, please consult the text of Chapter 17-1400, consult the reference materials found on the website, e-mail econtractphilly@phila.gov, or call 215-686-4914.

Applicants are advised that under Chapter 17-1400 individuals and businesses that make campaign contributions in excess of the amounts set forth in Section 17-1404(1), as periodically adjusted, are ineligible to enter into a City contract or subcontract at any tier. Applicants should take this into consideration in electing to apply for this opportunity or in selecting subcontractors if awarded a contract to perform the work sought by this RFP.

At their option, Applicants may require that their subcontractors disclose to the Applicants, the subcontractors' direct and indirect campaign contributions to candidates who are running for, and/or incumbents who are currently serving in local Philadelphia elected office and to political committees/parties that are operating in Philadelphia (federal campaign contributions are not included **unless** the subject of the campaign is also running for, or currently serving in a local Philadelphia elected office). Disclosure forms may be found on the Disclosure/Eligibility – Subcontractor Disclosure tab on eContract Philly. Applicants are not required to submit these forms to the City.

Applicants who have failed to file complete applications to the correct opportunity – including the online disclosure forms – through the eContract Philly online application process prior to the closing date and time will not be considered for the contract.

You are encouraged to start and complete your online application on eContract Philly as early as possible. Please be aware that internet connection speed depends on a variety of factors including: configuration of your computer, configuration of your business or home network, the condition of the wiring at your location, network or internet congestion (available bandwidth). Please prepare and plan accordingly to ensure a timely submission. Your proposal and other application documents will not be considered submitted until you sign the application and click on the “submit” button at the conclusion of the eContract Philly process. It is your responsibility to make sure that you have signed and submitted your complete application to the correct contract opportunity established for this RFP.

You can begin uploading (or attaching) your proposal and other application materials at any time. It is especially prudent for you to start uploading your attachments earlier if you have a large number of attachments (e.g. over five documents) or larger-sized attachments (e.g. above 5 MB). Please be advised that the eContract Philly website will not accept documents larger than 8 MB. If you have documents larger than 8 MB, you must separate them into smaller documents in order to successfully upload them to the system. Until you sign and submit your application, your materials are not accessible to any staff with the City of Philadelphia. Once you have signed and submitted your application, your application is accessible only to appropriate contract staff within the City of Philadelphia.

You are advised that any individual who signs and submits an application on eContract Philly must be an authorized signatory of the Applicant, authorized to both bind the Applicant to its proposal and to make the disclosures required to complete the eContract Philly process. Therefore, in conjunction with their electronic signatures provided at the conclusion of the submission of their applications online, signatories will be required to certify that they are the Applicant or are employees or officers of the Applicant duly authorized to execute the application and make disclosures on the Applicant’s behalf; and they represent and covenant that, to the best of their knowledge after appropriate inquiry, all of the information and disclosures provided are true and contain no material misstatement or omissions.

Except as expressly provided otherwise on eContract Philly, Applicants that obtain the RFP via eContract Philly shall be bound by all instructions, disclaimers, terms and conditions for viewing, downloading and/or printing the RFP that are posted on the “Terms of Use” page of the site (accessed by clicking <https://www.phila.gov/terms-of-use/>). These Terms of Use are incorporated in and made a part of this RFP by reference.

3.1.2 Transparency in Business Demographic Data Disclosures

In accordance with Philadelphia Code Section 17-1402(1)(b)(.4), if the resulting contract is valued at or over \$94,000, the Applicant, if awarded, agrees to provide the following information before conformance of the contract:

- (a) Applicant's prior years of experience performing on City contracts in any capacity during the five calendar years prior to the date the application must be filed;
- (b) "Demographic Data" (race, ethnicity, gender identity, job title, salary range, length of employment, Philadelphia residence, and other categories that may be established by regulation) on all individuals employed by the Applicant and as of the "Report Date" (June 30th immediately preceding the date the application is filed); and
- (c) Demographic Data on all individuals serving as board members of the Applicant on the Report Date.

Such disclosures shall be made on the online form provided by the City at: <https://www.phila.gov/departments/office-of-the-chief-administrative-officer/transparency-in-business-disclosure-for-prime-contractor/>. The resulting contract will include a representation and covenant by the successful applicant that these disclosures contain no material misstatements or omissions. Under Section 17-1402(1)(f) of the Code, material misstatements or omissions of these disclosures under two or more contracts shall constitute a breach of such representation and covenant, rendering the contract voidable at the City's option, and shall subject the contractor to liquidated damages to the City in the amount of ten percent (10%) of the total value of the payments to be made to the contractor under the contract.

In addition, Applicant understands that false certification or representation is subject to prosecution under Title 18 Pa.C.S.A. Section 4904.

3.1.3 Pre-Proposal Meeting

A Pre-Proposal Meeting to review the requirements of this RFP will be held virtually via (Microsoft Teams/Skype/Zoom) on February 25th, 2026, starting at 11 am. Click link for meeting ([Teams Link](#))

Attendance at the Pre-Proposal meeting is optional. Applicants are expected to be present for the entire meeting and the City reserves the further right, in its sole discretion, to refuse admission to any prospective Applicant arriving more than thirty (30) minutes after the start of the Meeting, and to reject without evaluation any Proposal subsequently submitted by such an Applicant.

3.1.4 Addenda to the RFP; Requests for Information; Inconsistencies

The City may, in its sole discretion, issue addenda to this RFP containing responses to questions and requests for information, addressing matters raised at the Pre-Proposal meeting(s), clarifications of the RFP, revisions to the RFP, or any other matters that the City deems appropriate. Addenda will be posted on eContract Philly. It is the Applicant's responsibility to monitor eContract Philly for Addenda and to comply with their terms.

All questions, requests for clarification, and requests for additional information regarding this RFP must be submitted to the City's Primary Contact not later than the deadline set forth in Section 1.3. All such questions and requests must be submitted in writing, by email, to the City's Primary Contact. Responses to such questions and requests shall be at the City's sole discretion and nothing in this RFP shall create an obligation on the City to respond to the submitting party or at all. In the City's sole discretion, responses may be posted on eContract Philly without formal notification to prospective Applicants.

No oral response by any employee or agent of the City shall be binding on the City or shall in any way constitute a commitment by the City.

If an Applicant finds any inconsistency or ambiguity in the RFP or an addendum to the RFP issued by the City, the Applicant is requested to notify the City in writing by the questions due date as set forth in Section 1.3.

3.1.5 Proposals Binding

By submitting its Proposal, the Applicant agrees to be bound by all terms and conditions of its Proposal, including, without limitation, the prices stated therein, for a period of one hundred and eighty (180) days from the Submission Date. An Applicant's refusal to enter into a contract that reflects such terms and conditions may, in the City's sole discretion, result in rejection of the Proposal, termination of any negotiations with the Applicant, and/or Applicant's forfeiture of its Proposal Security, if required by this RFP, as set forth in the "Proposal Security" section of the RFP (included in the RFP if Proposal Security is required).

It shall be the Applicant's responsibility to review and verify the completeness of its Proposal.

Applicants may withdraw or modify their Proposals at any time prior to the Submission Date by written notice of withdrawal or written submission of the modification, signed in the same manner and by the same person(s) who signed the initial Proposal, to the City's Primary Contact. The City reserves the right, at its sole discretion, to permit or require modifications to any Proposal after it is submitted, as set forth in the "Reservation of Rights" sections of the RFP.

Proposal and the use of Artificial Intelligence (AI)

Applicant certifies that, regardless of whether AI was used in preparing this proposal, the contents of this proposal:

- were thoroughly reviewed by a human subject matter expert for accuracy and completeness, and
- are owned or licensed to be used by, or otherwise lawfully used by, the Applicant.

Applicant further understands and agrees that, notwithstanding any authorized or unauthorized use of AI by Applicant or its employees or agents, Applicant is responsible for the accuracy, completeness, and lawful use of the content submitted within Applicant's proposal.

3.1.6 Proposal Submission Requirements

Proposals submitted in response to this RFP must be submitted electronically on eContract Philly, in accordance with the instructions and requirements there posted and by the time and date provided in Section 1.3, *Proposal Submission Date; Anticipated Procurement Schedule*. Proposals should include a table of contents listing all sections, figures, and tables and their corresponding page numbers.

Qualifications and Technical/Cost Proposals in Separate Volumes. Applicants will organize their Proposals into two separate electronic files, referred to herein as Volume 1 and Volume 2. The details for each volume are provided below:

- Volume 1 - Qualifications

Volume 1 will set forth the Applicant's qualifications and must be labeled on the cover with **_Special Event Permitting Software Solution_ Proposal, Volume 1 – Vendor Qualifications.** The required contents of Volume 1 are defined in the "Qualifications of Applicants" section below.

- Volume 2 – Technical Approach and Cost Proposal

Volume 2 will set forth the Applicant's technical approach and solution for meeting the requirements of the RFP, and its cost Proposal, and must be labeled on the cover with **_Special Event Permitting Software Solution_ Proposal, Volume 2 – Technical Approach and Cost Proposal.** The required contents of Volume 2 are defined in the "Technical Approach and Cost Proposal" section below.

3.2 Implementation Plan, Statement of Work, Project Schedule and Milestone Payment Schedule

Applicants must submit the following documents (collectively, "Project Documents") as part of their Proposals, in accordance with the overall structure of the work as set forth in the RFP and the specific format and other requirements provided in Appendix B (if no requirements are provided in Appendix B, Applicants should submit the Project Documents in the form they currently use for work of the type here sought):

- (a) an implementation plan for the proposed System and/or services that describes in detail (i) the methods, including controls, by which the Applicant manages projects of the type sought by this RFP; (ii) where software is to be developed, customized, and/or implemented as part of the project, the Applicant's software development and implementation methodology, including, but not limited to, version control, error correction, pre-delivery testing and de-bugging procedures, and post-installation testing; (iii) and any other project management or implementation strategies or techniques that the Applicant intends to employ in carrying out the work;
- (b) a detailed statement of the work to be performed, in a form that the Applicant considers appropriate and sufficient for incorporation in a contract document;
- (c) a detailed project schedule, identifying all tasks and deliverables to be performed, durations for each task, principal schedule milestones, and overall time of completion; and
- (d) a milestone payment schedule setting forth the frequency and amount of progress payments and identifying the tasks and deliverables ("milestones") to be completed for each payment.

Proposals will be evaluated in part on the adequacy of the proposed Project Documents. The City reserves the right, in its sole discretion, to impose additional or different requirements on any of the Project Documents submitted in any Proposal, without notice to other Applicants.

3.3 Proposal Contents

3.3.1 Volume 1 – Qualifications of Applicants

Proposals will be evaluated, in part, on the Applicant's ability, in the City's sole judgment, to demonstrate technical and financial capacity to perform the work it proposes in accordance with the requirements of this RFP. Applicants are accordingly required to furnish the information described below. The City reserves the right, in its sole discretion, to require additional or different qualifications information, and is the sole judge of whether the Applicant's submissions meet the information requirements provided below and are sufficient to demonstrate the Applicant's qualifications.

Volume 1 of the Proposal should include the following sections, with the information specified for each.

Volume 1, Section 1: Description of Applicant. The Applicant shall provide:

- (a) Name, street address, mailing address if different, email address, and telephone and facsimile numbers of the Applicant.
- (b) Year established (include former firm names and year each applied). Identify the country and state in which the firm was incorporated or otherwise organized.
- (c) Type of ownership and parent company and subsidiaries, if any. Include dates of any corporate mergers and/or acquisitions including all present and former subsidiaries with dates of any and all re-structuring since the founding date.
- (d) Address and telephone number of production facility(ies) where any of the work is to be accomplished (if different than item a); name, address, and telephone number of the proposed project manager.
- (e) A narrative description and organization chart depicting the management of the Applicant's organization and its relationship to any larger business entity.
- (f) A description of the overall operations of the Applicant, the number and scope of other projects currently ongoing or set to begin in the near future.
- (g) A narrative description of Applicant's familiarity with and prior operating experience in the Philadelphia region. Specifically identify (i) all projects in the last five years on which Applicant has worked that are valued at over \$100,000 and located in the City of Philadelphia, (ii) any contracts valued at over \$100,000 entered into with the City of Philadelphia in the last five years; and (iii) any contracts valued at over \$100,000 entered into with any other government entity in the last five years (the 30 most recent such contracts shall be sufficient; Applicants may list more than 30).

- (h) Provide, at Applicant's option, any additional information not specifically listed above which demonstrates the qualifications of the Applicant to perform the scope of work specified in this RFP.

Volume 1, Section 2: Technical Qualifications

- (a) The Applicant shall provide information that demonstrates that it possesses the technical expertise that the City requires for this RFP.
- (b) Applicants should submit references from owners of projects that are comparable in size, complexity and scope of work sought by this RFP. The references should also demonstrate the Applicant experience with the technology solution proposed. The histories of such projects that they have completed, firm resumes and resumes of key personnel should also be included as well as other such information believed to demonstrates the indicated types of experience. All references should include the name, title, telephone number of both the current owner of the project and the owner of the project at time of work effort. Specific reasons for using the reference must also be provided.
- (c) The Applicant must demonstrate adequate experience in the following areas; the City prefers a minimum of five years such experience:
- (1) Large-scale, distributed database design and implementation.
 - (2) Wide Area Network (WAN) and Local Area Network (LAN) integration.
 - (3) PC and mainframe operating system management and support.
 - (4) Software design, integration, testing and support.
 - (5) Help desk operations.
 - (6) Computer-based training development.
 - (7) Large-scale project management experience.
 - (8) High availability systems that are mission critical.
 - (9) Wireless technology especially development and implementation experience.
 - (10) Previous installations of _____.
 - (11) Previous experience and installation of municipal, state or federal information systems
 - (12) Experience in installing and maintaining Oracle-based applications/databases.
 - (13) Experience in managing transition to the proposed environment.
 - (14) Experience with the process proposed to implement the solution (either package or build), including demonstrated ability to control peripheral devices (i.e. mobile devices, scanners, etc.).
 - (15) Network infrastructure and procurement.
 - (16) Architecture and design services.
 - (17) Installation services.
 - (18) Network monitoring and management services.
 - (19) Network maintenance and upgrade services.
 - (20) Operations Support Systems (OSS) services.
 - (21) Experience with the implementation of call centers with _____ or more operators.
- (d) Additional experience in the following areas, while not mandatory, is preferred:

Volume 1, Section 3: Financial Qualifications. The Applicant shall provide: **[All information provided will be considered confidential]**

- (a) A narrative that demonstrates its financial capacity to undertake and complete the project as proposed and to furnish software systems and/or services in accordance with the RFP;
- (b) A current audited statement of financial condition prepared by an independent certified public accountant;
- (c) Financial statements for the two (2) years preceding the year to which the statement required in b applies, prepared by an independent certified public accountant;
- (d) A bank reference;
- (e) A statement disclosing any audits of the Applicant by the federal government;
- (f) A statement disclosing any bankruptcy or insolvency proceeding that Applicant has filed or that has been against Applicant pursuant to Chapter 11 or Chapter 7 of the United States Bankruptcy Code, or any applicable state law of comparable effect.
- (g) If performance and/or payment bonds are required under the RFP, a notarized letter from an approved surety stating the willingness of the surety to issue the bonds to the Applicant as principal;
- (h) A description of contracts with municipalities for work of similar type, scope, and value as the work sought by this RFP; including, for each, the name, address, and telephone number of a contact person;
- (i) A copy of the most recent Form 10-K filed by the Applicant with the U.S. Securities and Exchange Commission, and copies of all Form 8-Ks filed since the filing of the most recent 10-K. If a Form 10-K is not filed with the SEC, submit the following:
 - certified audited financial statements for the past three fiscal years including, at a minimum, income statements, balance sheets and statements of changes in financial position; if fewer than three years of financial statements are available, this information should be provided to the fullest extent possible;
 - copies of the latest quarterly financial reports;
 - a copy of the Applicant's most recent annual report;
- (j) If the Proposal is submitted by a partnership and/or joint venture, provide full information concerning the nature and structure of the partnership and/or joint venture, including:
 - What entity will be guaranteeing contract performance?
 - Date of joint venture or partnership.
 - Does the agreement between members comprising the joint venture make each jointly and severally liable for contractual obligations of this project?

- (k) Any other information not specifically itemized above that it believes to be demonstrative of its financial capacity.

Volume 1, Section 4: Local Business Entity or Local Impact Certification. (Optional if applicable to Applicant)

If applicable, Applicant may elect to provide the certification statement in the form of Appendix D as to Applicant's status as a Local Business Entity or its local impact if awarded the contract. (See Section 3.5 for more information.)

3.3.2 Volume 2 – Technical Approach and Cost Proposal

Volume 2 will set forth the Applicant's technical approach and solution for meeting the requirements of the RFP, and its Cost Proposal. Volume 2 of the Proposal should be divided into five index-tabbed sections, including the information identified below for each section.

Volume 2, Section 1: Organization and Management. The Applicant shall provide the following in Section 1:

- (a) Organizational charts addressing the delineation of authority and responsibilities in performing the work described in the Proposal and identifying all key personnel, including, but not limited to, the project manager.
- (b) Company affiliation, job title, and resume of each individual listed in on the organizational chart, setting forth work experience, education, professional achievements, and any publications related to the type of work to be performed. (The City will require that the key people proposed for the project participate in their proposed capacities and the City must approve any substitutions or replacements.)
- (c) Detailed descriptions of the following:
 - The system development methodology as defined in the "Project Approach and Plan" in the RFP Appendices;
 - The project management approach as defined in the "Project Approach and Plan" in the RFP Appendices;
 - All computer hardware, communications equipment, network equipment, and other equipment required for the software system proposed, with detailed specifications for each;
 - A mapping of functional and other requirements to the technology requirements;
 - Reasons for selection of hardware and software environment, if applicable; and,
 - The proposed pilot ("proof of concept") implementation, if required by the RFP.

Volume 2, Section 2: Scope of Work Plan. Section 2 will provide a detailed description of the Applicant's plan for completing the work proposed in accordance with the time-of-performance requirements of the RFP. The plan should include:

- (a) The proposed Project Documents, as described in Section 3.2, *Implementation Plan, Statement of Work, Project Schedule and Milestone Payment Schedule*;
- (b) A comprehensive list of tasks required to complete the scope of work proposed, with estimated effort (expressed in persons, identified by skill set, and hours) required for each task;
- (c) A detailed written description of how the Applicant intends to accomplish each task;
- (d) The name of key personnel identified in Volume 2, Section 1 who will be assigned to complete each task;
- (e) The approximate amount of time each day that each of the key personnel identified in Volume 2, Section 1 will spend on the project (e.g. Project Director will spend approximately 25 percent of his/her time during Step 1 of the project);
- (f) The items specified in the Appendices to the RFP, to the extent not provided in response to the foregoing;
- (g) All assumptions relied upon to develop the work plan and estimate and all conditions for its fulfillment as proposed, with specific emphasis on City responsibilities; and
- (h) Any other technical or management approach or process that the Applicant will use to ensure that the project plan can be completed as proposed and in accordance with the time-of-performance constraints provided in the RFP.

Volume 2, Section 3: Technical Proposal. Section 3 should include detailed information addressing each of the following:

- (a) Topology and infrastructure diagrams defining the technology proposed;
- (b) The software architecture of the proposed solution (two-tier or three-tier environment, etc.), including detailed justification for the architecture selected and information correlating each software component or tool proposed to the following architecture layers, each of which must be described in detail:
 - workflow-processing plan that defines the solution with respect to process definition and workflow API and interchange.
 - reporting infrastructure proposed to handle predefined and ad hoc reports.
 - archiving and auditing plan to address the business requirements;
- (c) Logistical and support plan for deployment of the application;
- (d) Outline of city resource requirements for supporting the proposed solution;
- (e) Outline of the disaster recovery plan for supporting the proposed solution;

- (f) Anticipated bandwidth requirements;
- (g) Server storage and hardware requirements with associated cost;
- (h) Network issues such as latency, coverage issues, time-of-day performance, network congestion, packet size, and other performance factors.
- (i) Performance standards for the software system proposed, including, but not limited to, the items identified below, together with any network or other equipment specifications or characteristics, and any assumptions as to number of concurrent users and their levels of access, on which the performance standards are conditioned:
 - Server Disk input/output (I/O)
 - Transactions Per Minute (TPM)
 - Page Swapping
 - Response Time
 - Throughput
 - Performance assumptions
 - System Availability expressed in “mean time to failure” and “mean time to repair”
 - Bandwidth utilization expressed in bytes per second required by the system under all anticipated load conditions

Volume 2, Section 4: Cost Proposal.

The Cost Proposal must conform to the requirements provided in Appendix C, *Cost Proposal Requirements*, and must be submitted on the template provided on eContract Philly. An example of a completed template section is attached in Appendix C for purposes of illustration only.

Applicants should note that the City is not subject to federal, state, or local sales or use taxes or to federal excise tax. The cost proposal may not include any such taxes.

Volume 2, Section 5: Requirements Compliance Certification

Detailed requirements for the System are provided in Appendix A, *Detailed Project Requirements*. The Proposal must specify, for each requirement, that the proposed solution and/or services fully satisfies the requirement, does not satisfy the requirement, or partially satisfies the requirement (in which case, the extent of compliance and non-compliance with the requirement must be fully identified and explained, including all features not provided).

Applicants are accordingly required to fill out and submit the Requirements Compliance Matrix attached in Appendix D, *Requirements Compliance Certification*. To facilitate responses and the City’s review, the City will provide an electronic version of the Matrix in Excel. Each row of this spreadsheet will contain one requirement; columns in the spreadsheet will contain drop down lists with acceptable responses. The first response column will allow the vendor to select whether the requirement (i) is fully satisfied by the proposed solution, (ii) is partially satisfied, or (iii) is not satisfied at all. When the value corresponding to either “partially satisfied” or “not satisfied” is

selected, the vendor will be directed (and is required) to provide an explanatory response in the next column of the spreadsheet. The permitted values for the explanatory response column are (iv) the requirement could be fully satisfied with customization of the software, (v) the requirement will be fully satisfied with the next planned release of the software, or (vi) the requirement will not be satisfied by the proposed solution.

Where (iv) is the response, the required customization must be fully described, and any additional cost to the City identified. Where (v) is the response, the release date (i.e. final, ready-for-production release date) must be provided, together with a full description of all features that the software will not provide and all respects in which it will not satisfy the requirement until such release. Where (vi) is the response, a full description of all features that the software will not provide and all respects in which it will not satisfy the requirement must be provided. These further explanations are to be provided in text sections identified by entering a reference number in the last column of the spreadsheet, with a separate reference number to the additional text for each requirement.

The Requirements Compliance Matrix, in the form of a Microsoft Excel 97 or above spreadsheet, is available on eContract Philly. The completed Matrix must be included with the Proposal materials submitted to eContract Philly.

3.4 Certification of Compliance with Equal Benefits Ordinance

If this RFP is a solicitation for a “Service Contract” as that term is defined in Philadelphia Code Section 17-1901(4), and results in a Service Contract in an amount in excess of \$250,000, then, pursuant to Chapter 17-1900 of The Philadelphia Code, the contractor shall, for any of its employees who reside in the City, or any of its employees who are non-residents subject to City wage tax under Philadelphia Code Section 19-1502(1)(b), be required to extend the same employment benefits contractor extends to spouses of its employees to life partners of such employees, absent a waiver by the City under Section 17-1904. By submission of their Proposals in response to this RFP, all Applicants so acknowledge and certify that, if awarded a Service Contract pursuant to this RFP, they will comply with the provisions of Chapter 17-1900 of The Philadelphia Code and will notify their employees of the employment benefits available to life partners pursuant to Chapter 17-1900. Following the award of a Service Contract subject to Chapter 17-1400 and prior to execution of the Service Contract by the City, the successful Applicant shall certify that its employees have received the required notification of the employment benefits available to life partners and that such employment benefits will actually be available, or that the successful Applicant does not provide employment benefits to the spouses of married employees. The successful Applicant’s failure to comply with the provisions of Chapter 17-1900 or any discrimination or retaliation by the successful Applicant against any employee on account of having claimed a violation of Chapter 17-1900 shall be a material breach of any Service Contract resulting from this RFP.

3.5 Local Business Entity or Local Impact Certification

Pursuant to Mayoral Executive Order No. 04 -12, the Department will, in the selection of the successful Applicant, consider whether that Applicant has certified that either (1) Applicant meets the criteria stated in Section 17-109(3)(b) of the Philadelphia Code to qualify as a Local Business Entity or (2) in the performance of the resulting contract, Applicant will employ City residents, or perform the work in the City. Any Applicant who wishes to demonstrate its eligibility for this consideration shall do so by completing, executing and attaching to its application a completed Local

Business Entity or Local Impact Certification, the form of which is attached to this RFP as Exhibit D. The Applicant shall then also include in a separate section of the application, labeled “Local Business Entity or Local Impact Certification,” a statement that the Applicant believes it has met the Local Business Entity or Local Impact criteria “as set forth in the attached Local Business Entity or Local Impact Certification.” The City Department shall deem it a positive factor where the Applicant has, in the City’s sole discretion, met the Local Business Entity or Local Impact criteria.

The City is committed to leveraging its buying power to uplift and grow our local economy, which will result in more jobs for Philadelphians., For this reason, the City will consider local impact as a significant factor in our proposal evaluation for this contracting opportunity. If you meet the requirements of a certified Local Business Entity (LBE), we strongly recommend that you get certified for free by following the steps found here:

<https://www.phila.gov/services/business-self-employment/bidding-on-a-city-contract/get-certified-as-a-local-business-entity/>

Include a copy of your certification with your proposal and/or include a statement about how you envision impacting the local economy through this work.

For contracts valued at \$1 million or more annually, please also detail in your proposal the local impact if you are awarded the contract, by including the following information:

- a. Anticipated quality jobs created or sustained in Philadelphia through the contract;
- b. Anticipated hiring of Philadelphia residents to perform work under the contract;
- c. Will you open offices in Philadelphia if awarded the contract?;
- d. Are you planning to form a joint-venture or subcontract with any Philadelphia-based entities? If so, please detail those partnerships; and,
- e. Any other information you deem relevant to demonstrating local impact.

3.6 The Philadelphia Tax and Regulatory Status and Clearance Statement

It is the policy of the City of Philadelphia to ensure that each contractor and subcontractor has all required licenses and permits and is current with respect to the payment of City taxes or other indebtedness owed to the City (including, but not limited to, taxes collected by the City on behalf of the School District of Philadelphia), and is not in violation of other regulatory provisions contained in the Philadelphia Code. To assist the City, through its Department of Revenue and Department of Licenses and Inspections, in determining this status, each Applicant is required to submit with its proposal the certification statement entitled City of Philadelphia Tax and Regulatory Status and Clearance Statement which is attached to this RFP as Appendix H.

If the Applicant is not in compliance with the City’s tax and regulatory codes, an opportunity will be provided to enter into satisfactory arrangements with the City. If satisfactory arrangements cannot be made, Applicants will not be eligible for award of the contract contemplated by this RFP.

The selected Applicant will also be required to assist the City in obtaining the above information from its proposed subcontractors (if any). If a proposed subcontractor is not in compliance with City Codes and fails to enter into satisfactory arrangements with the City, the non-compliant

subcontractor will be ineligible to participate in the contract contemplated by this RFP and the selected applicant may find it necessary to replace the non-compliant subcontractor with a compliant subcontractor. Applicants are advised to take these City policies into consideration when entering into their contractual relationships with proposed subcontractors.

If an Applicant or a proposed subcontractor is not currently in compliance with the City's tax and regulatory codes, please contact the Revenue Department to make arrangements to come into compliance at 215-686-6600 or revenue@phila.gov.

Applicants need not have a City of Philadelphia Business Income and Receipts Tax Account Number (formerly Business Privilege Tax Account Number) and Commercial Activity License Number (formerly Business Privilege License Number) to respond to this RFP, but will, in most circumstances, be required to obtain one or both if selected for award of the contract contemplated by the RFP.^[1] Applications for a Business Income and Receipts Tax Account Number or a Commercial Activity License^[2] may be made on line by visiting the City of Philadelphia Business Services Portal at Portal at <https://www.phila.gov/services/business-self-employment/business-taxes/> and clicking on "Get a tax account." If you have specific questions, call the Department of Revenue at 215-686-6600 for questions related to City of Philadelphia Business Income and Receipts Tax Account Number or the Department of Licenses and Inspections at 215-686-2490 for questions related to the Commercial Activity License checks.

3.7 LGBTQ Applicant Opportunity Data

As part of the City's commitment to diversity, equity and inclusion in all aspects of City procurement, the City is collecting data to identify the number of companies beneficially owned and controlled by Lesbian, Gay, Bisexual, Transgender and Queer persons who wish to do business with the City (collectively, "LGBTQ businesses"). The data will be used to identify the number of LGBTQ businesses currently doing business with the City. It will also assist in efforts to include LGBTQ certified businesses into the City's vendor database.

Please see LGBTQ form attached to this RFP on eContracts. Response to this form is voluntary.

^[1] Applicants that have a Business Privilege Tax Number should use that number, as it is automatically their Commercial Activity License Number, and need not apply for a new Commercial Activity License Number. Similarly, Applicants with a Business Privilege Tax Account Number should use that number as their Business Income and Receipts Tax Account Number.

^[2] Commercial Activity Licenses are not typically required for non-profit organizations; however, Business Income and Receipts Tax Account Numbers typically are required.

APPENDIX A

DETAILED PROJECT REQUIREMENTS

At a high level, the desired features and functionality of the software solution should include, but not be limited to:

A.1 Functional requirements

A.1.1 Multi-application hosting. The solution shall support multiple permit application types and the ability to manage multiple permit applications concurrently.

A.1.2 Permit generation and distribution. The solution shall support creating, managing, and issuing permits directly through the system.

A.1.3 Service request creation. The solution shall support generating service requests/tasks based on applicant needs and/or applicant inputs.

A.1.4 Post-submission editing and document upload. The solution shall provide options to modify submitted applications and upload additional documentation after submission (subject to workflow controls and permissions).

A.1.5 Conditional logic workflows. The solution shall support configurable workflows and conditional logic that adapt routing, required fields, and/or required documentation based on application inputs.

A.1.6 Real-time status tracking. The solution shall provide transparent, real-time status updates for applicants and City personnel.

A.1.7 External communication. The solution shall provide direct messaging and/or communication options between applicants and the City, with message history retained.

A.1.8 Internal collaboration tools. The solution shall provide communication/collaboration features to support interdepartmental coordination.

A.1.9 Centralized dashboards and calendars. The solution shall provide centralized dashboards and calendar views to support unified views of applications, events, and schedules.

A.1.10 Third-party integrations. The solution shall support integration with third-party systems (e.g., billing/payment processing, GIS, business licensing databases, and/or supplemental applications), including describing available integration methods (API, SSO, webhooks, file exchange, etc.).

A.1.11 Invoice management. The solution shall provide tools for generating and managing invoices.

A.1.12 Multi-user access and permissions. The solution shall support multiple user profiles and configurable permission levels/roles.

A.2 Professional services – Training and support

A.2.1 Training delivery (required topics). The Applicant shall provide comprehensive training sessions for all City personnel users of the system, covering at minimum: (i) system navigation; (ii) application processing; (iii) report generation; and (iv) troubleshooting procedures.

A.2.2 Training materials. The Applicant shall provide training materials for ongoing reference, including at minimum user manuals/user guides, video tutorials (or recordings of training sessions), and FAQs.

A.2.3 Training plan. The Applicant shall submit a detailed training plan outlining the format, schedule, and scope of training services provided.

A.3 Information requested from Applicants

Applicants shall answer the following in their Proposal :

A.3.1 Solution overview. Describe key features/capabilities as they relate to requirements A.1 and A.2.

A.3.2 System customization/configuration. Describe configuration/customization options to tailor workflows to Philadelphia’s special event permitting process.

A.3.3 Integration capabilities. Explain integration approach for payment processors, GIS, business licensing databases, and other third-party systems.

A.3.4 Implementation plan. Provide a typical implementation timeline and approach for a large city with multi-department coordination.

A.3.5 Training and support. Describe staff training, applicant onboarding, and ongoing technical support.

A.3.6 Cost structure. Provide high-level pricing (licensing, implementation, training, ongoing support).

A.3.7 Post-implementation adjustments. Describe process and costs to modify workflows/forms/features after implementation, including whether City personnel can make changes or vendor involvement is required and the applicable pricing model (hourly, subscription updates, tiered support). Specify whether these changes can be made by City personnel or require vendor involvement, and outline any pricing models (e.g., hourly rates, subscription-based updates, or tiered support plans).

APPENDIX B

REQUIREMENTS FOR IMPLEMENTATION PLAN, STATEMENT OF WORK, PROJECT SCHEDULE, AND MILESTONE PAYMENT SCHEDULE

Please refer to Section 3.2

COST REQUIREMENTS
APPENDIX C

The City requests that Applicants offer their “best” solutions that will satisfy the requirements set forth in this RFP. If the proposal includes more than one solution based on the software applications or hosting platforms there must be a separate cost itemization for each solution proposed. **The City is not subject to federal, state, or local sales or use taxes or to federal excise tax. The cost proposal may not include any such taxes.**

- Base System Software with description of functionality
- Optional Software Add-ons available
- Professional Services to implement Base System and Add-ons
- Professional Services to provide Training
- Documentation
- Software Maintenance Agreement Years 1, 2, 3, 4, 5
- Other associated costs

Appendix C.1 Base System Software				
Add additional rows as needed.				
#	COMPONENT	DESCRIPTION	COST \$	ASSUMPTIONS
1				
2				
3				
4				
Total			\$0	

Appendix C.2 Optional Software Add-ons available				
Add additional rows as needed.				
#	COMPONENT	DESCRIPTION	COST \$	ASSUMPTIONS
1				
2				
3				
Total			\$0	

Appendix C.3: Professional Services to implement Base System and Add-ons				
Add additional rows as needed.				
#	STAFF NAME	TITLE	HOURLY RATES \$	EST. HOURS
1				
2				
3				
4				
Totals:				0
				\$0

COST REQUIREMENTS
APPENDIX C

Appendix C.4: Professional Services to provide Training					
For professional services to provide training, please include proposed costs for all training staff. Add additional rows as needed. Please include non-staff training costs in the C.6-Other Associated Costs section. Add additional rows as needed.					
#	STAFF NAME	TITLE	HOURLY RATES \$	EST. HOURS	TOTAL \$
1					
2					
3					
4					
Totals:				0	\$0

Appendix C.5: Software Maintenance Agreement Years 1, 2, 3					
For maintenance and support services, please include a monthly price for post-implementation maintenance and support for a further three-year period beyond completion of the phased deployment and production services associated with those phases as described in this proposal. Any ongoing maintenance and support (i.e., production services) prior to the completion of all work provided under this agreement should be Professional Services section of the Cost Proposal. Add additional rows as needed.					
#	COMPONENT	DESCRIPTION	MONTHLY COST	ANNUAL COST	ASSUMPTIONS
1					
2					
3					
4					
Total			\$0	\$0	

Appendix C.6: Other associated costs				
Add additional rows as needed.				
#	COMPONENT	DESCRIPTION	COST \$	ASSUMPTIONS
1				
2				
3				
4				
Total			\$0	

COST REQUIREMENTS
APPENDIX C

Appendix C.7: ASSUMPTIONS	
The Contractor is required to state all assumptions upon which its pricing is being determined. Insert as many lines as necessary to ensure all concerns are accurately expressed. Add additional rows as needed.	
#	ASSUMPTION
1	
2	
3	
4	

APPENDIX D

REQUIREMENTS COMPLIANCE CERTIFICATION

See Compliance Requirements Matrix attached to opportunity

Each Applicant must complete and submit the Requirements Compliance Matrix (Excel spreadsheet) as part of its Proposal. The matrix lists all requirements from **Appendix A, Sections A.1 and A.2**.

For each requirement, the Applicant must:

1. **Select a Vendor Response Code** from the dropdown menu:
 - **STANDARD** – Provided with standard application; no customization required
 - **CONFIGURATION** – Functionality accomplished through configuration
 - **ADD-ON** – Requires an add-on module (specify in Comments)
 - **CUSTOMIZATION** – Requires software customization (explain in Comments)
 - **THIRD-PARTY** – Accomplished with third-party software
 - **FUTURE** – Will be provided in a future release (specify release and date in Comments)
 - **N/A** – Not available; not supported by proposed application
 - **NO RESPONSE** – No response provided
2. **Identify required modules, add-ons, or customizations** (in the designated column).
3. **Provide comments** explaining the response, including any impacts to cost, schedule, or operations.

The City may deem a Proposal non-responsive if the Compliance Matrix is missing, materially incomplete, or if the Applicant does not clearly identify gaps, exceptions, or deviations from the requirements of this RFP.

APPENDIX E

TRAINING REQUIREMENTS

The successful Applicant will be required to provide training services sufficient to support implementation, go-live, and ongoing effective use of the System. Proposals must describe the training approach, proposed curriculum, training materials, and the Applicant's experience delivering the types of training proposed, and the Cost Proposal must identify training as line-item pricing where applicable.

Training services are required. The Applicant's Proposal must address and satisfy the training requirements in **Appendix A, Section A.2** and must include a detailed Training Plan as described in **A.2.3**.

The Training Plan must specify the format, schedule, audience groups, and scope of training services, and should clearly indicate any assumptions or City responsibilities required to deliver training (e.g., access to a training environment, user accounts, attendance expectations).

APPENDIX F
RESERVED

APPENDIX G

PROVISIONS REQUIRED BY CHAPTER 17-1400 OF THE PHILADELPHIA CODE

1. DEFINITIONS - The terms below shall have the following meaning within this Exhibit.

1.1 **Applicant.** “Applicant” has the meaning as set forth in Subsection 17-1401(1) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition was “[a] Person who has filed an application to be awarded a Non-Competitively Bid Contract.”

1.2 **City Agency.** “City Agency” has the meaning as set forth in Subsection 17-1401(5) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition was “[a]ny office, department, board, commission or other agency of the City of Philadelphia.”

1.3 **City-Related Agency.** “City-Related Agency” has the meaning set forth in Section 17-1401(6) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition was “[a]ll authorities and quasi-public corporations which either: receive appropriations from the City, have entered into continuing contractual or cooperative relationships with the City, or operate under legal authority granted to them by City ordinance.”

1.4 **Consultant.** “Consultant” has the meaning set forth in Subsection 17-1401(7) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition provided that Consultant means “[a]ny Person used by an Applicant or Contractor to assist in obtaining a Non-Competitively Bid Contract through direct or indirect communication by such Person with any City Agency or any City officer or employee, if the communication is undertaken by such Person in exchange for, or with the understanding of receiving, payment from the Applicant or Contractor or any other Person; provided, however, that “Consultant” shall not include a full-time employee of the Applicant or Contractor.”

1.5 **Contributions.** “Contributions” has the meaning set forth in the Pennsylvania Election Code, 25 P.S. Section 3241; except that “Contribution” shall not include a contribution to a campaign committee with respect to a campaign for federal office, except where the subject of such campaign is also a candidate for, or an incumbent holding, City elective office at the time of the contribution.

1.6 **Financial Assistance.** “Financial Assistance” has the meaning set forth in Section 17-1401(10) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition was “[a]ny grant, loan, tax incentive, bond financing subsidy for land purchase or otherwise, or other form of assistance that is realized by or provided to a Person in the amount of fifty thousand dollars (\$50,000) or more through the authority or approval of the City, including, but not limited to, Tax Increment Financing (TIF) aid, industrial development bonds,

use of the power of eminent domain, Community Development Block Grant (CDBG) aid or loans, airport revenue bonds, and Enterprise Zone or similar economic development zone designations (such as Keystone Opportunity Zones, Keystone Opportunity Expansion Zones, Keystone Opportunity Improvement Zones, and Economic Development District Zones), but not including any assistance to which a Person is entitled under a law enacted before the Person applied for or requested such assistance.”

1.7 **Non-Competitively Bid Contract.** “Non-Competitively Bid Contract” has the meaning set forth in Section 17-1401(13) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition was “[a] contract for the purchase of goods or services to which the City or a City Agency is a party that is not subject to the lowest responsible bidder requirements of Section 8-200 of the Charter, including, but not limited to, a Professional Services Contract, and any renewal of such a contract.”

1.8 **Professional Services Contract.** “Professional Services Contract” has the meaning set forth in Section 17-1401(16) of The Philadelphia Code, as it may be amended from time to time. As of January 1, 2020, that definition was “[a] contract to which the City or a City Agency is a party that is not subject to the lowest competitive bidding requirements of Section 8-200 of the Charter because it involves the rendition of professional services, including any renewal of such a contract (other than a renewal term pursuant to an option to renew contained in an executed contract).”

2. **REPRESENTATIONS** Contractor makes the following representations, warranties and covenants upon which the City has relied as a material consideration for the execution and delivery by the City of this Contract:

2.1 In accordance with Section 17-1402 of The Philadelphia Code, Contractor represents that contribution(s) will not be made during the term of the Contract by Contractor or any party from which a contribution can be attributed to Contractor, that would render Contractor ineligible to apply for or enter into a Non-Competitively Bid Contract or to receive Financial Assistance under the provisions of Philadelphia Code Sections 17-1404(1) and 17-1405 and, further, that disclosures required by Subsection 17-1402(1)(b) made as part of its application to receive a Non-Competitively Bid Contract or Financial Assistance contain no material misstatements or omissions.

2.2 Contractor will not use any Subcontractor(s) that is ineligible to enter into a Non-Competitively Bid Contract with the City. To that end, Contractor will enter into a written Subcontract with each Subcontractor which requires said Subcontractor to represent that contributions will not be made that would render the Subcontractor ineligible to enter into a Subcontract pursuant to Chapter 17-1400 of The Philadelphia Code.

Contractor will promptly report to the City if any contributions have been made that would render a Subcontractor ineligible to enter into a Non-Competitively Bid Contract with the City.

2.3 In addition to remedies set forth in the Agreement, breach of Subarticle 2(1) above shall constitute an event of default and render the Contract voidable at the City’s option, and shall make

Contractor liable for liquidated damages to the City in the amount of ten percent (10%) of the maximum payments to Contractor allowed under the Contract, regardless whether actually paid. For disclosures concerning prior years' experience and demographic data required under subsection (1)(b)(.4), material misstatements or omissions under two or more contracts shall constitute a breach of these representations

2.4 Subject to Subsection 17-1402(2) (Failure to Disclose Consultant's Contributions) of The Philadelphia Code, Contractor shall, during the term of the Contract and for one (1) year thereafter, disclose any contribution of money or in-kind assistance Contractor or any Consultant has made during such time period to a candidate for nomination or election to any public office in the City of Philadelphia or to an individual who holds such office, or to any political committee or party in the City of Philadelphia, or to any group, committee or association organized in support of any such candidate, office holder, political committee or party, and the date and amount of such contribution. Such disclosure shall be made on a form provided by the Department awarding the Contract, and the form shall be signed and filed with such Department according to the quarterly schedule set forth in Section 17-1402(1)(e)(.5). The Department receiving the disclosure form shall forward copies to the President and Chief Clerk of Council, and to the Mayor, Finance Director, Procurement Department, and the Department of Records. The attribution rules of Philadelphia Code Section 17-1405 shall apply to determine what contributions must be disclosed under this provision as contributions of Contractor or of a Consultant. It shall not be a violation of this Subarticle 2(4) if Contractor fails to disclose a contribution made by a Consultant because the Contractor was unable to obtain such information from the Consultant, provided that the Contractor demonstrates that it used reasonable efforts to attempt to obtain such information, including, at a minimum:

- (a) Entering into a written agreement with the Consultant for such Consultant's services before Contractor filed its application for the Contract;
- (b) Including in such agreement a provision requiring Consultant to provide the Contractor in a timely manner with all information required to be disclosed under the provisions of Code Chapter 17-1400 and providing that the agreement will be terminated by the Contractor if Consultant fails to provide all required information on a timely basis and that no further payments, including payments owed for services performed prior to the date of termination, will be made to Consultant, by or on behalf of the Contractor, as of the date of such termination;
- (c) Communicating regularly with the Consultant concerning the Consultant's obligations to provide timely information to permit the Contractor to comply with all provisions of Code Chapter 17-1400; and
- (d) Invoking the termination provisions of the agreement in a timely and full manner.

Contractor will promptly report any such disclosures required hereunder or lack of apparently required disclosures to the City.

2.5 Contractor shall, during the Term of the Contract and for one year thereafter, disclose the name and title of each City officer or employee who, during such time period, asked Contractor, any officer, director or management employee of Contractor, or any Person representing Contractor, to give money, services, or any other thing of value (other than a Contribution as defined in Section 17-1401) to any Person, and any payment of money, provision of services, or any other thing of value (other than a Contribution as defined in Section 17-1401) given to any Person in response to any such request. Contractor shall also disclose the date of any such request, the amount requested, and the date and amount of any payment made in response to such request. Such disclosure shall be made on a form provided by the Department awarding the contract, and the form shall be signed and filed with the Department according to the quarterly schedule set forth in Section 17-1402(1)(e)(.5). The Department receiving the disclosure form will forward copies to the President and Chief Clerk of Council, and to the Mayor, Finance Director, Procurement Department, and the Department of Records.

2.6 In accordance with Subsection 17-1402(1)(e)(.4) of The Philadelphia Code, Contractor shall, during the term of the Contract, disclose the name and title of each City officer or employee who directly or indirectly advised Contractor, any officer, director or management employee of Contractor, or any Person representing Contractor that a particular Person could be used by Contractor to satisfy any goals established in the Contract for the participation of minority, women, disabled or disadvantaged business enterprises. Contractor shall also disclose the date the advice was provided, and the name of such particular Person. Such disclosure shall be made on a form provided by the Department awarding the contract, and the form shall be signed and filed with the Department according to the quarterly schedule set forth in Section 17-1402(1)(e)(.5). The Department receiving the disclosure form will forward copies to the President and Chief Clerk of Council, and to the Mayor, Finance Director, Procurement Department, and the Department of Records.

2.7 The above representations, warranties and covenants shall continue throughout the Term of this Contract. Subarticles 2(4) and 2(5) shall survive for one (1) year thereafter; provided, however, that if Contractor is a recipient of financial assistance, Contractor shall be subject to such representations, warranties and covenants for a period of five (5) years after receiving such assistance. In the event said representations, warranties and covenants are, or become, untrue or inaccurate, Contractor shall promptly give notice thereof to the City, specifying the manner in which said representation, warranty or covenant is untrue or inaccurate.

2.8 Pursuant to Section 17-1406(6) of The Philadelphia Code, the requirements of this subsection 2 do not apply to Contractor if Contractor is a governmental agency or not-for-profit corporation established by the City.

3. APPLICABILITY TO CITY RELATED AGENCIES

3.1 If Contractor is a City-Related Agency, Contractor shall abide by the provisions Chapter 17-1400 of The Philadelphia Code in awarding any contract(s) pursuant to this Contract as though such contracts were directly subject to the provisions of Chapter 17-1400, except that the exception

set forth at Section 17-1406(8) of The Philadelphia Code shall apply to Contractor as if Contractor were listed in that subsection.

3.2 The Contract shall include a provision detailing how the City-Related Agency is to carry out its duties under 17-1400, including, but not limited to, specifying who at the City-Related Agency is responsible for carrying out duties that 17-1400 assigns to City officers and employees.

4. REMEDIES

In addition to and not in lieu of the remedies set forth in the Agreement and elsewhere herein, the following remedies provided in Chapter 17-1400 of The Philadelphia Code shall apply:

Pursuant to Section 17-1407, Prohibited Conduct; Penalties; Remedies: No Applicant shall make a material misstatement or omission in the disclosures required by Section 17-1402(1)(b); and no Contractor shall make a material misstatement or omission in the disclosures required by Section 17-1402(1)(e); and no Person seeking Financial Assistance shall make a material misstatement or omission in the disclosures required by Section 17-1404(3)(a). If an Applicant makes material misstatements or omissions in the disclosures required by Section 17-1402(1)(b), or if a Contractor makes material misstatements or omissions in the disclosures required by Section 17-1402(1)(e), such Applicant or Contractor shall be prohibited from entering into any Non-Competitively Bid Contract for a period of from one (1) to three (3) years, and such act shall be subject to a fine as provided for in Chapter 20-1300 of the Philadelphia Code (“Penalties For Campaign Finance-Related and Ethics-Related Violations”).

**APPENDIX H
CITY OF PHILADELPHIA TAX AND REGULATORY
STATUS AND CLEARANCE STATEMENT
FOR APPLICANTS**

THIS IS A CONFIDENTIAL TAX DOCUMENT NOT FOR PUBLIC DISCLOSURE

This form must be completed and returned with Applicant's proposal in order for Applicant to be eligible for award of a contract with the City. Failure to return this form will disqualify Applicant's proposal from further consideration by the contracting department. Please provide the information requested in the table, check the appropriate certification option and sign below:

Please ENSURE that the Applicant Name and EIN on this form is IDENTICAL with your eContract Philly registration.

Applicant Name	
Contact Name and Title	
Street Address	
City, State, Zip Code	
Phone Number	
Federal Employer Identification Number or Social Security Number:	
Philadelphia Business Income and Receipts Tax Account Number (f/k/a Business Privilege Tax) (if none, state "none")*	
Commercial Activity License Number (f/k/a Business Privilege License) (if none, state "none")*	

____ I certify that the Applicant named above has all required licenses and permits and is current, or has made satisfactory arrangements with the City to become current with respect to the payment of City taxes or other indebtedness owed to the City (including, but not limited to, taxes collected by the City on behalf of the School District of Philadelphia), and is not in violation, or has made satisfactory arrangements to cure any violation, or other regulatory provisions applicable to Applicant contained in The Philadelphia Code.

____ I certify that the Applicant named above does not currently do business, or otherwise have an economic presence in Philadelphia. If Applicant is awarded a contract with the City, it promptly will take all steps necessary to bring it into compliance with the City's tax and other regulatory requirements.

Authorized Signature

Date

Print Name and Title

* You can apply for a City of Philadelphia Business Income and Receipts Tax Account Number or a Commercial Activity License on line after you have registered your business on the City's Business Services website located at <https://www.phila.gov/services/business-self-employment/register-a-business/> Click on "Register" or "Register Now" to register your business.

APPENDIX I

LOCAL BUSINESS ENTITY OR LOCAL IMPACT CERTIFICATION

SEE ATTACHED FORM ON OPPORTUNITY
(Form automatically provided on eContracts)

**APPENDIX J
RESERVED**

APPENDIX K

ADDITIONAL IT STANDARDS

DATA REQUIREMENTS, ADDRESSING, GENERAL TECHNICAL, DIGITAL, WEB CONTENT ACCESSIBILITY AND SECURITY

If applicable, applications or solutions proposed by vendors must be in alignment with these City's Standards: ***(See Appendix K attached to RFP for full details)***

- **Data Requirements Standards**

All City solicitations that include the purchase of software or services relating to information systems must incorporate the requirements of this policy.

- Data Access Requirements for Third Party Systems
- Master Data Requirements
- Metadata Standards
- Date Formats
- Common Data Elements for Geospatial Data
- Data Protection and Retention

- **Addressing Standards** should be adopted for use within all database systems, applications or tables that maintain a property address.

- **General Technical Standards** - The City's standard non-functional requirements for IT systems ensure that information systems are resilient and secure so that the City's information is safeguarded, and its staff can continue operations (as supported by IT systems) in the event of a disaster.

- **Digital Standards** provide the design, code, and content guidelines for City website and web application development;

- **Web Content Accessibility Standards** - All sites produced by vendors for the City, regardless of the hosting environment, shall conform to the Web Content Accessibility Guidelines (WCAG) 2.1 AA. These guidelines will make content more accessible to a wider range of people with disabilities.

- **Security Addendum** - All City Data and the systems on which they reside must be protected in accordance with City security and privacy

documentation and system risk, to include, at a minimum, adequate safeguards for the following:

Confidentiality, which means preserving authorized restrictions on access and disclosure, based on the security terms found in this contract, including means for protecting personal privacy and proprietary City Data;

Integrity, which means guarding against improper information modification or destruction, and ensuring information non-repudiation and authenticity; and

Availability, which means ensuring timely and reliable access to and use of City Data.

Please see full standards attached to this RFP entitled “Appendix K – Additional IT Standards”

APPENDIX L

IT IMPLEMENTATION PROVIDER AGREEMENT

Contract Number _____

[Month Year], [XX/xx]
City of Philadelphia
[Department Name]

PROVIDER AGREEMENT

Computer and Information Services: Implementation

THIS PROVIDER AGREEMENT is executed on _____, and effective [as of] _____, 20____, between **The City of Philadelphia** (the “City”), through its [Department Name] (the “Department”), and [Provider Legal Name] (“Provider”).

BACKGROUND

The City and Provider desire that Provider furnish to the City the Services and Deliverables specified in Exhibit PA-1 and any attachments thereto (hereinafter, collectively referred to as “Exhibit PA-1”), and elsewhere in the Contract Documents, in accordance with the provisions of this Provider Agreement, the City of Philadelphia Professional Services Contract General Provisions for Computer and Information Services, as revised _____ (the “General Provisions”), and all of the other documents and exhibits that constitute the Contract Documents and the Contract as those terms are defined in the General Provisions. A copy of the General Provisions is attached and incorporated in the Contract by reference.

Accordingly, intending to be legally bound, the City and Provider agree as follows:

ARTICLE I: GENERAL TERMS

1.1 Incorporation of Background. The Background is incorporated by reference.

ARTICLE II: DEFINITIONS

The following terms shall have the meanings set forth herein. Capitalized terms not otherwise defined herein shall have the meanings set forth in the General Provisions or in the text of this Provider Agreement.

2.1 City User(s).

“City User(s)” means the City’s employees, agents, consultants and/or contractors whose duties require that they use and/or have access to the Services or Deliverables.

2.2 CPU, Computer.

“CPU” or “Computer” means computer Central Processing Unit.

2.3 Data Breach.

“Data Breach” means any access, destruction, loss, theft, use, modification or disclosure of City Data as defined in Section 17.2 by an unauthorized party, or that is in violation of the Contract and/or applicable local, state, or federal law.

2.4 Deliverables.

“Deliverables” means, collectively, the tangible items of work, as described in Exhibit PA-1 and elsewhere in the Contract, that Provider is required to furnish as part of its performance of the Contract, including, without limitation, all Software, Documentation, designs, reports, documents, and Materials required under this Provider Agreement.

2.5 Documentation.

“Documentation” means technical manuals, user’s manuals, and other manuals and information published by Provider for the Software, including, without limitation, such manuals and information that are set forth in Exhibit PA-1.

2.6 Materials.

“Materials” means, collectively, any and all materials and work product, tangible and intangible, prepared or developed by Provider in connection with the Contract, or for Provider by a Subcontractor in connection with the performance of the Contract , including but not limited to reports, records, documents, documentation, information, supplies, plans, original drawings, specifications, computations, sketches, renderings, arrangements, videos, pamphlets, advertisements, statistics, data, computer tapes, and software.

2.7 Milestone.

“Milestone” means the Services and/or Deliverables comprising a milestone set forth in the Milestone Payment Schedule.

2.8 Milestone Payment Schedule.

“Milestone Payment Schedule” means the milestone payment schedule attached as Attachment A to Exhibit PA-1.

2.9 Services.

“Services” means the professional services and other services and work to be furnished by Provider under this Contract, as specified in Exhibit PA-1 and elsewhere in this Contract.

2.10 Software.

“Software” means the computer software, if any, to be furnished by Provider under this Contract, as set forth in Exhibit PA-1 and elsewhere in this Provider Agreement.

ARTICLE III: TERM; TIME OF PERFORMANCE

3.1 Initial Term.

The Initial Term of this Contract starts _____, and expires _____, or such earlier date as the City may determine in accordance with Articles X (Events of Default), XI (Remedies) and XII (Termination) of the General Provisions. In no event shall the Initial Term be longer than twelve (12) months.

3.2 Additional Term(s).

The City may amend this Contract in its sole discretion in accordance with Section 2.2 (Additional Terms) of the General Provisions. Except as stated otherwise in Exhibit PA-1 or elsewhere in this Provider Agreement, the terms and conditions applicable during the Initial Term shall be applicable during any Additional Term.

3.3 Time and Schedule for Performance.

Provider shall commence performance of the Contract on the date specified in the City’s Notice to Proceed (“Notice Date”), and shall complete all Services and furnish all Deliverables within ____ (_____) weeks following the Notice Date. Provider shall carry out the work in accordance with the Schedule of Performance set forth in Exhibit PA-__.

ARTICLE IV: SERVICES AND DELIVERABLES

4.1 Services and Deliverables.

Provider shall perform and furnish the Services and Deliverables (as defined in the General Provisions and this Provider Agreement) that are described in Exhibits PA-1 and PA-__, in strict accordance with the descriptions of functionality and performance set forth in such Exhibit(s); the specifications, documentation, and other standards of performance set forth therein, and the Warranty Standards, as defined in Article VII (Warranty), below.

4.2 Departmental Guidelines.

All Services and Deliverables shall be performed in accordance with the Department Guidelines (if any) set forth in Exhibit PA-__.

ARTICLE V: COMPENSATION

5.1 Amount.

(a) As total compensation for all Services and Deliverables required under the Contract and accepted by the Responsible Official pursuant to Article VIII (Acceptance) below, the City covenants and agrees to pay to Provider: \$#,###,###.##. Provider's compensation shall include all charges for shipping and delivery of the Software, Documentation, and Deliverables at the City location designated in Exhibit PA-1.

(b) Notwithstanding anything in this Contract to the contrary, the Office of the Director of Finance may not certify payments for Services and Deliverables during the Initial Term or Additional Terms that in total exceed \$#,###,###.## per term.

5.2 Manner of Payment.

(a) Payment shall be made after Provider's timely submission of invoices to the Responsible Official, in the number, form, and content acceptable to the Responsible Official, accompanied by such additional supporting data and documentation as the Responsible Official may require. All payments to Provider are contingent upon satisfactory performance of the terms and conditions of this Contract. Payments shall be made in accordance with the Milestone Payment Schedule attached as Attachment A to Exhibit PA-1. Payment shall not be due or owing from the City to Provider for any of the Services and/or Deliverables comprising a Milestone, as set forth in the Milestone Payment Schedule, unless or until the City has issued its written statement of Conditional Acceptance for the Milestone in accordance with Section 8.1, Conditional Acceptance. Provider shall submit its final invoice not more than sixty (60) days from completion of the Services and delivery of Deliverables.

(b) All payments to Provider shall be by deposits into Provider's designated bank account by electronic means, unless the City, in its sole discretion, makes payment by check. Provider agrees that the City need not make payment until Provider has completed and submitted to the City the appropriate electronic payment processing enrollment form at <https://vendor-payments.phila.gov/login>. Only the individuals identified by Provider as authorized to execute contracts and change financial and banking information on behalf of Provider will be eligible to receive passwords, which shall be in Provider's sole control. Provider must immediately confirm all changes to banking information by emailing voucherverification@phila.gov and the Department and by giving notice to the Department. The City may delay new payments until the

Department has confirmed the validity of the change. Provider, and not the City, shall be solely responsible for any City payment following the unauthorized use of a Provider password.

(c) The City reserves the right to withhold or offset against any funds payable to Provider for any invoice for which the Responsible Official asserts a discrepancy exists or for Provider's failure to satisfactorily perform the terms of the Contract, as determined solely by the City.

5.3 Retainage for Contract Compliance.

The City shall retain twenty (20) per cent of each payment due to Provider until all Services and Deliverables are completed in accordance with the Contract and are Finally Accepted by City in accordance with Article VIII (Acceptance), below. All such retained amounts shall become due and payable thirty (30) days following such Final Acceptance.

ARTICLE VI: LICENSE; CONDITIONS OF USE; TITLE

6.1 Power to License.

Provider represents and covenants that it has full power and authority to grant the rights granted by this Contract to the City with respect to all Software and other Deliverables furnished, without the consent of any other person or entity, and that such rights are irrevocable.

6.2 License.

Subject to the terms and conditions of this Contract, and except as stated otherwise in Section 7.5 below, Provider hereby grants, and shall require its Subcontractors to grant, to the City a perpetual, non-exclusive, non-transferable, royalty-free license to use all Software, Documentation, and other Deliverables that are proprietary to Provider or to a Subcontractor (collectively, the "Provider's Licensed Products").

6.3 Third Party Licenses.

Subject to the terms and conditions of this Contract, and except as stated otherwise in Section 7.5 below, Provider agrees to furnish to the City a perpetual, non-exclusive, non-transferable, royalty-free license(s), in the City's name, to the following Software, Documentation, and Deliverables that are proprietary to third parties (collectively, the "Third Party Licensed Products"):

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6.4 Conditions of Use.

Provider represents, and the City acknowledges such representation, that the Provider's Licensed Products and Third Party Licensed Products (collectively, the "Licensed Products") contain valuable proprietary information. Except as stated otherwise in Exhibit PA-1, the City's use of the Licensed Products shall be subject to the following conditions:

(a) Use of the Software shall be restricted to the number of CPU(s), the City location(s), and/or the number of concurrent users designated in Exhibit PA-1; provided that if such restrictions are not expressly stated in Exhibit PA-1, the City may use the Software on any CPU and at any location of its choosing, by an unlimited number of concurrent users.

(b) The City will not (1) change or remove Provider's insignia, lettering, or copyright or other restrictive legends from the Software or Documentation; (2) without Provider's written permission, use Software or Documentation for preparing the same or similar software, or reverse engineer, decompile or disassemble the Software; or (3) sell or lease the Software or Documentation to, or permit its use by, any party other than the City Users. Subject to the foregoing, the City agrees, to the extent permitted by law, to maintain the confidentiality of the Software and Documentation.

(c) The City may copy the Software and Documentation for safekeeping or backup purposes; may make additional copies of the Software for use by the City Users as provided in Exhibit PA-1; and may make additional copies of Documentation for use by the City Users.

(d) The City may modify the Software and/or combine the Software with other software; provided, however, that those portions of the derivative software incorporating software subject to the conditions of use set forth in this Article VI shall be subject to the same conditions of use.

6.5 Title; Ownership of Materials.

(a) Title and copyright to all Licensed Products and any reproductions thereof shall remain with Provider, or where not proprietary to Provider, with the person(s) or entity(ies) that have title and copyright thereto.

(b) All Software, Documentation, Deliverables and Materials provided under this Contract, other than the Licensed Products and including, without limitation, the Software, Documentation and Deliverables identified in Section 6.5(c), shall be the sole and absolute

property of the City and the City shall have all right, title, and interest thereto (including, without limitation, copyright, trademark, service mark, patent, trade secret, and all other intellectual property rights) and unrestricted use thereof. To the extent that any Software, Documentation, Deliverables and/or Materials, other than Licensed Products, developed by or for Provider embody a copyrightable work (including, but not limited to, a “compilation” as that term is used in 17 U.S.C. §101, as amended), the City and Provider agree that such copyrightable work(s) shall be considered as one or more “works made for hire” by Provider for the City, as that term is used in 17 U.S.C. §§101 and 201(b), as amended. To the extent that any Software, Documentation, Deliverables and/or Materials, other than Licensed Products, developed by or for Provider embody one or more copyrightable works but are neither a “compilation” nor any other form of “work made for hire,” Provider hereby assigns, and agrees to execute instruments evidencing such assignment, all copyrights in all of such works to the City. All the foregoing terms and conditions of this Section 6.5(b) shall apply to all Software, Documentation, Deliverables and Materials, other than Licensed Products, furnished to Provider by a Subcontractor (in this Article VI only, the “Subcontractor Deliverables”). Provider shall obtain from its Subcontractors the assignment of all copyrights and other rights in the Subcontractor Deliverables that may be necessary for Provider to comply with all terms and conditions of this Section 6.5(b) with respect to the Subcontractor Deliverables.

(c) Software, Documentation, Deliverables and Materials owned by the City include, but are not limited to:

ARTICLE VII: WARRANTY

7.1 Warranty; Warranty Standards.

For a period of twelve (12) months following the City’s Final Acceptance of the Software in accordance with Article VIII (“Acceptance”) below, Provider warrants that all Software, Documentation, other Deliverables, and Services shall be free from material defects and errors and shall function together as an integrated system in conformance with (1)-(5) following

(collectively the “Warranty Standards”): (1) the descriptions of functionality and performance and all other standards of performance set forth in Exhibit PA- and elsewhere in the Provider Agreement; (2) the Documentation; (3) Provider’s most current specifications for the Software; (4) any applicable design documents prepared by Provider under the Contract, as approved and accepted by the City; and (5) all acceptance and/or test criteria or standards of performance specified in Article VIII (Acceptance) below, and or in Exhibit PA- , including, without limitation, any such criteria or standards of performance set forth in any “Test Plan(s)” (as defined in Article VIII (Acceptance) below) that are accepted and approved by the City. Provider further warrants that all Software shall be fully compatible with the following software and hardware and shall operate in accordance with the Warranty Standards in combination with such software and hardware:

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7.2 Defects and Errors.

(a) During the Warranty Period, Provider shall furnish materials and Services necessary to correct material defects and errors in the Software Documentation or Deliverables and cause it to operate in accordance with the Warranty Standards at no additional cost to the City. Provider shall exercise its best efforts to correct errors, defects, and non-conformances with the Warranty Standards within forty-eight (48) hours following notice by the City, which notice may be by telephone, email, or facsimile in accordance with Section 19.1 (Notice) below, or by any other electronic means made available by Provider (such as a portal) for the purpose of reporting issues. If the last day of the Warranty Period falls on a Saturday, Sunday, national holiday, or City holiday, the Warranty Period shall be deemed to be extended until midnight of the next business day.

(b) For purposes of this Article VII, a “material” defect or error shall be any defect, error, or failure to conform to the Warranty Standards that prevents the completion of City business functions or processes using or relying on the Software, or that prevents the performance of functions or features of the software on which the City business functions or processes depend.

7.3 Limitation.

THE FOREGOING WARRANTY IS MADE EXPRESSLY IN LIEU OF ALL OTHER EXPRESS AND IMPLIED WARRANTIES, INCLUDING, WITHOUT

LIMITATION, ANY IMPLIED WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE OR OF MERCHANTABILITY; PROVIDED, HOWEVER, THAT NOTHING CONTAINED IN THIS ARTICLE VII SHALL LIMIT OR ALTER PROVIDER'S INDEMNIFICATION AND OTHER OBLIGATIONS PROVIDED IN ARTICLE VIII (INDEPENDENT CONTRACTOR; INDEMNIFICATION; LITIGATION COOPERATION) OF THE GENERAL PROVISIONS AND ARTICLES XVI (PATENT, COPYRIGHT AND OTHER PROPRIETARY RIGHTS INDEMNITY) AND XVIII (CENTURY DATE STANDARD) AND SECTION 6.1 (POWER TO LICENSE) OF THIS PROVIDER AGREEMENT.

ARTICLE VIII: ACCEPTANCE

8.1 Acceptance.

(a) Conditional Acceptance. Within thirty (30) days following Provider's completion of all Services and Deliverables comprising a Milestone set forth in the Milestone Payment Schedule, the City shall issue its written statement of Conditional Acceptance to Provider for the Milestone, provided that all such work comprising the Milestone conforms to the Warranty Standards as defined in Article VII (Warranty) above and successfully completes all applicable Conditional Acceptance Tests (as defined in Section 8.1(c) (Acceptance Tests; Test Plans) below). Payment shall not be due or owing from the City to Provider for any of the Services and/or Deliverables comprising a Milestone unless or until the City has issued its written statement of Conditional Acceptance for the Milestone.

(b) Final Acceptance. Within thirty (30) days following successful completion of Final Acceptance Tests (as defined in Section 8.1(c) (Acceptance Tests; Test Plans) below), and the completion of all other Services and Deliverables required under the Contract, the City shall issue its written statement of Final Acceptance of the Services and Deliverables, provided that the Services and Deliverables (1) function together as an integrated system in conformity to the Warranty Standards and (2) meet all performance standards and criteria set forth in the Test Plan(s) for the Final Acceptance Tests, as accepted and approved by the City. Provider shall not be deemed to have performed the Services and Deliverables, nor shall the payment of retainage for contract compliance be due to Provider, unless and until the City issues its written statement of

Final Acceptance.

(c) Acceptance Tests; Test Plans. The Services and Deliverables comprising each Milestone in the Milestone Payment Schedule shall be subject to conditional acceptance testing as approved and accepted by the City (the “Conditional Acceptance Tests”), and the Services and Deliverables as an integrated system shall be subject to final acceptance testing as approved and accepted by the City (the “Final Acceptance Tests”). No Conditional or Final Acceptance Test or other test of the Services and Deliverables shall commence unless and until Provider has delivered and the City has accepted and approved a written plan or plans setting forth a test method and criteria and standards of performance that must be satisfied for the test to be successful (the “Test Plan(s)”). The Test Plan(s) shall be Deliverables under the Contract.

(d) Reliability Period. It shall be a condition of Final Acceptance that the completed and fully integrated System function in the production environment in conformance with the Final Acceptance standards as set forth in Section 8.1(b)(1)-(2) and without any Material Defect for a period of 30 consecutive calendar days, commencing on the day following the first successful completion of the Final Acceptance Test. In the event the System suffers any Material Defect or Material Failure prior to the expiration of such period (the “Reliability Period”), Provider shall remedy such Material Defect Failure, and a new 30 consecutive calendar day Reliability Period (the “Second Reliability Period”) shall begin on the day that Provider notifies the City that the remedy has been completed. In the event the System does not successfully complete the Second Reliability Period without any Material Defect, the City may, at its sole discretion, terminate the Contract for default and exercise any one or more of the remedies provided to the City in the Contract.

8.2 Conformance; Correction Period.

If the City determines that any Services or Deliverables do not conform to the Warranty Standards and/or other conditions of Acceptance set forth above in this Article VIII, and notifies Provider of such non-conformance, Provider shall have a period of thirty (30) days after the City’s notice (or a longer period if mutually agreed in writing) to remedy the non-conformance(s) (“Correction Period”). If the non-conformance(s) are not completely remedied within the Correction Period, the Services and Deliverables may, at the City’s sole discretion, be rejected, in whole or in part; upon return of the rejected Deliverables to Provider, the City shall have no further payment or other obligation to Provider with respect thereto and in addition to any other remedies that may be

available to the City under the Contract, may terminate the Contract and/or exercise its remedies under Articles X (Events of Default), XI (Remedies) and XII (Termination) of the General Provisions.

ARTICLE IX: MAINTENANCE AND SUPPORT SERVICES

9.1 Term and Cost of Maintenance and Support Services.

Provider will furnish maintenance and support services for the Software, as described in this Article IX, for a period of twelve (12) months commencing upon the City's Final Acceptance of the Software in accordance with Article VIII (Acceptance) above (such period being referred to in this Article IX as the "Initial Maintenance Term"), for a total cost of _____ Dollars (\$ _____), which amount is included in the total compensation set forth in Article V (Compensation) above. Upon expiration of the Initial Maintenance Term, the City shall have the right to order further maintenance and support services on an annual basis, in accordance with Section 2.2 (Additional Terms) of the General Provisions, at rates not to exceed the rates then charged by Provider to its most favored customer for such services.

9.2 Scope of Maintenance and Support Services.

(a) During the Initial Maintenance Term and any further terms for maintenance and support services ("Additional Maintenance Term(s)"), Provider shall, for the charges specified in Section 9.1 (Term and Cost of Maintenance and Support Services) above, keep the Software in good operating condition and in conformance with the Warranty Standards, as defined in Article VII (Warranty) above; and shall bear all costs related thereto, including, without limitation, travel, labor and documentation costs. Maintenance and support can normally be accomplished remotely, by sending, via mail or email, the required files with the correction(s), update(s) or enhancement(s) which have been made, and accompanying instructions for their implementation, or by making same available for download from a Provider support site; however, if implementation of changes requires Provider's personnel in attendance at the City's installation site, then Provider shall furnish the necessary personnel at its sole cost. Maintenance shall include changes, updates, and the detection and correction of all Software errors.

(b) Provider shall exercise its best efforts to correct errors, defects, and failures to conform with the Warranty Standards, as defined in Article VII (Warranty) above, within forty

eight (48) hours following notice by the City, which notice may be by telephone, computer modem, or facsimile, in accordance with Section 19.1 (Notice) below.

ARTICLE X: DEPOSIT OF DOCUMENTATION

10.1 Deposit of Source Code.

(a) Prior to delivery of the Software, Licensor shall deposit with the Custodian specified in Section 10.2 (Custodian) below one (1) copy of the full source code for the Software, together with documentation therefor sufficient to enable a reasonably skilled programmer or analyst to maintain the Software. The source code and documentation shall be held by the Custodian for delivery to the City if Provider fails to support the Software, and in that event only for the proper maintenance of Software which is in use by the City. To the extent permitted by law, the City shall maintain the confidentiality of the source code and documentation.

(b) Provider will deposit all updates and changes to the materials described in this Subsection 10.1 (a) above in the same manner and on the same basis there specified. Such further deposits shall be made whenever updates and changes are released or implemented.

(c) The City agrees that the Custodian may return to Provider or destroy the materials described in this Subsection 10.1(a) above after the City has discontinued all use of the Software to which the materials apply.

(d) Provider shall pay all fees charged by the Custodian for such deposit of source code and documentation.

10.2 Custodian.

Provider's Custodian is:

10.3 Escrow Agreement.

At the City's option, Provider and the City shall negotiate in good faith and execute, with an escrow agent of their joint selection, an escrow agreement that is mutually satisfactory and that incorporates, inter alia, the terms and conditions of this Article X. Upon execution of such escrow agreement by all parties thereto, this Contract shall be deemed modified to incorporate the

escrow agreement and to replace Sections 10.1 (Deposit of Source Code) and 10.2 (Custodian) above and 10.4 (Source Code Statement) below by the terms and conditions thereof.

10.4 Source Code Statement.

In lieu of compliance with Sections 10.1 (Deposit of Source Code) and 10.2 (Custodian) and 10.3 (Escrow Agreement) above, Provider may deliver to the City one (1) copy of a full source code statement for the Software (including all future updates and changes) and complete maintenance documentation for same.

ARTICLE XI: SOFTWARE CONVERSIONS

Full monetary credit shall be allowed to the City when conversion from one (1) version of the Software to another is made as the result of a change in operating systems (e.g. DOS/VS to MVS), or from one CPU to another. The purchase price for a license to the converted Software, on the terms and conditions set forth in Article VI (License; Conditions of Use) above, shall be reduced by the amount that was paid to purchase the license to the earlier version. Provider will furnish maintenance and support services for the converted version of the Software, in accordance with Article IX (Maintenance and Support Services) above and at no additional cost to the City, for the balance of the Initial or Additional Maintenance Term(s) then current.

ARTICLE XII: SOFTWARE DESCRIPTIONS; EQUIPMENT COMPATIBILITY

Provider shall submit to the City, upon written request, a statement identifying all application and operating system software and the computer hardware with and on which the Software is compatible and will operate in accordance with specifications.

ARTICLE XIII: RISK OF LOSS OR DAMAGE

13.1 Risk of Loss or Damage.

Provider and its insurers will relieve the City, for the period from the commencement of Provider's performance through the City's Final Acceptance of the Services and Deliverables required under the Contract, as provided in Article VIII (Acceptance) above, from all risks of loss or damage to the Software, Documentation and other Deliverables by providing the City with a replacement copy thereof, upon written request by the City. Should it become necessary, during this period, to replace a tape, disk, or other media containing Software, due to damage, loss, defective equipment, or other such causes, there will be no charge for such

replacement except for media and delivery costs; provided, however, that this Section 13.1 shall not obligate Provider to furnish installation or other services not provided in the Contracts.

ARTICLE XIV: CHANGES

14.1 Changes in Scope of Services and Deliverables.

At any time during the term of this Contract, the City may make changes in any of the Services and Deliverables, within the general scope of the Contract as set forth in Article IV (Services and Deliverables) of this Provider Agreement, including, without limitation, the addition or deletion of Services and Deliverables, and changes in the time of performance. All such changes shall be by written order or request, signed by the Responsible Official (“Change Order”). If, in the judgment of the City, any such change causes an increase or decrease in the cost or the time required for the performance of the Contract, an equitable adjustment of the contract amount and/or time of performance will be made, subject to the following conditions: (a) In no event shall the City be liable to Provider for additional compensation for any alleged change to the work for which the City has not issued a Change Order; (b) any claim by Provider for such additional compensation or for an extension of the time of performance to perform a Change Order must be made in writing within ten (10) calendar days from the date on which Provider received the Change Order in accordance with Section 19.1 (Notice) below.

14.2 Extension of Time of Performance.

Provider shall be entitled to a reasonable extension of the time of performance, the length of which shall be determined by the City, for delays to its performance that are in no way the fault or responsibility of Provider; provided, however, that no such extension shall be granted unless a written request, setting forth in detail the grounds therefor, is received by the City within ten (10) calendar days following the events giving rise to such alleged delay. Provider's sole and exclusive remedy for costs or damages arising from any delay to its performance, whether or not caused by any act or omission of the City, Provider, or others, shall be an extension of the time of performance, and in no event shall Provider be entitled to payment or compensation of any kind from the City for any such costs or damages.

ARTICLE XV: INSURANCE; SURETY BONDS

15.1 Insurance.

Unless otherwise approved by the City’s Risk Management Division in writing,

Provider shall, at its sole cost and expense, procure and maintain, or cause to be procured and maintained, in full force and effect, the types and minimum limits of insurance specified below, covering Provider's performance of the Services and the furnishing of the Deliverables. Provider shall procure, or cause to be procured, all insurance from reputable insurers admitted to do business on a direct basis in the Commonwealth of Pennsylvania or otherwise acceptable to the City. All insurance herein, except the Professional Liability Insurance, shall be written on an "occurrence" basis and not a "claims-made" basis. In no event shall Provider perform any Services or other work until Provider has delivered or caused to be delivered to the City's Risk Management Division the required evidence of insurance coverages. All insurance coverages shall provide for at least thirty (30) days prior written notice to be given to the City in the event coverage is materially changed, cancelled, or non-renewed. The City, its officers, employees, and agents, shall be named as additional insureds on the General Liability Insurance policy. Provider shall also deliver or cause to be delivered to the City an endorsement stating that the coverage afforded the City and its officers, employees and agents, as additional insureds, will be primary to any other coverage available to them and that no act or omission of the City, its officers, employees or agents shall invalidate the coverage.

(a) WORKERS' COMPENSATION AND EMPLOYERS' LIABILITY INSURANCE

- (1) Workers' Compensation: Statutory limits
- (2) Employers' Liability: \$100,000 Each Accident - Bodily Injury by Accident; \$100,000 Each Employee - Bodily Injury by Disease; and \$500,000 Policy Limit - Bodily Injury by Disease.
- (3) Other states insurance including Pennsylvania.

(b) GENERAL LIABILITY INSURANCE

- (1) Limit of liability: \$1,000,000 per occurrence combined single limit for bodily injury (including death) and property damage liability; \$1,000,000 advertising injury; \$2,000,000 general aggregate and \$1,000,000 aggregate for products and completed operations. The City may require higher limits of liability if, in the City sole discretion, the potential risk warrants.

- (2) Coverage: Premises operations; blanket contractual liability; personal injury liability; products and completed operations; independent contractors; employees and volunteers as additional insureds; cross liability; and broad form property damage (including completed operations).

(c) AUTOMOBILE LIABILITY INSURANCE

- (1) Limit of liability: \$1,000,000 per occurrence combined single limit for bodily injury (including death) and property damage liability.
- (2) Coverage: Owned, non-owned and hired vehicles.

(d) PROFESSIONAL LIABILITY INSURANCE

- (1) Limit of liability: \$1,000,000 with a deductible not to exceed \$50,000.
- (2) Coverage: Errors and omissions including liability assumed under Contract.
- (3) Professional Liability Insurance may be written on a claims-made basis provided that coverage for occurrences happening during the performance of the Services required under this Contract shall be maintained in full force and effect under the policy or “tail” coverage for a period of at least two (2) years after completion of the Services.

(e) CYBER LIABILITY INSURANCE

- (1) Limit of liability: \$1,000,000 per claim/aggregate

(2) Coverage: Information security and privacy liability that arise under this contract, including, but not limited to: data while in transit or in the possession of any third parties hired by Contractor (such as data back-up services) to electronic system; loss of, damage to or destruction of electronic data breaches arising from unauthorized access or exceeded access; or malicious code, viruses, worms or malware; electronic business income and extra expense as a result of the inability to access website due to a cyber-attack or unauthorized access; Privacy Notification Extra Expense Coverage (including credit monitoring expense).

(3) Cyber Liability Insurance may be written on a claims-made basis provided that any retroactive date applicable to coverage under the policy

precedes the effective date of this contract; and that continuous coverage will be maintained or an extended discovery period will be purchased for a period of at least two (2) years after expiration or termination of this contract.

(4) The City of Philadelphia, its officers, employees and agents shall be named as additional insureds.

15.2 Evidence of Insurance Coverage.

Certificates of insurance evidencing the required coverages must specifically reference the City contract number for which they are being submitted. The original certificate of insurance must be submitted to the City's Risk Manager at the following address:

The City of Philadelphia
Office of the Director of Finance
Division of Risk Management
1515 Arch Street, 14th Floor
Philadelphia, PA 19102-1579
(Fax No.: 215-686-1705).

A copy of the certificate of insurance shall be submitted to the Responsible Official at the address of the Department set forth in Section 19.1 (Notice) below. Both submissions must be made at least ten (10) days before work is begun and at least ten (10) days before each Additional Term. The City, in its sole discretion, may waive the ten (10) day requirement for advance documentation of coverage in such situations where such waiver will benefit the City, but under no circumstances shall Provider actually begin work (or continue work, in the case of an Additional Term) without providing the required evidence of insurance. The actual endorsement adding the City as an additional insured must specifically reference the City contract number and be submitted to the City's Risk Management Division at the above address. The City reserves the right to require Provider to furnish certified copies of the original policies of all insurance required under the Contract at any time upon (10) days written notice to Provider.

15.3 Self-Insurance.

Provider may not self-insure any of the coverages required under the Contract without the prior written approval of the Responsible Official and the City's Risk Manager. In the event that Provider desires to self-insure any of the coverages listed above, it shall submit to the

Responsible Official and the City's Risk Management Division, prior to Provider's commencement of Services or furnishing of any Deliverables hereunder, a certified copy of Provider's most recent audited financial statement, and such other evidence of its qualifications to act as a self-insurer (e.g., state approval) as may be requested by the Responsible Official or the City's Risk Manager. In the event the City grants such approval, Provider understands and agrees that the City, its officers, employees, and agents shall be entitled to receive the same coverages and benefits under Provider's self-insurance program that they would have received had the insurance requirements set forth above been satisfied by a reputable insurer admitted and duly authorized to do business in the Commonwealth of Pennsylvania or otherwise acceptable to the City. If at the time of commencement of the Term of this Contract, Provider self-insures its professional liability and/or workers' compensation and employers' liability coverage, Provider may, in lieu of the foregoing, furnish to the City a current copy of the state certification form for self-insurance or a current copy of the State Insurance Commissioner's letter of approval, whichever is appropriate. The insurance (including self-insurance) requirements set forth herein are not intended and shall not be construed to modify, limit, or reduce the indemnifications made in this Contract by Provider to the City, or to limit Provider's liability under this Contract to the limits of the policies of insurance (or self-insurance) required to be maintained by Provider hereunder.

15.4 Performance Bond.

Prior to commencing performance of the Contract, Provider shall furnish to the City a fully executed original performance bond, as prepared by the City and in a form approved by the City Solicitor, in an amount equal to ____ (____) per cent of the total payment amount set forth in Section 5.1 (Amount) above, and having as surety thereon such surety company or companies as are approved by and acceptable to the City.

15.5 Labor and Materialmen's Bond.

Prior to commencing performance of the Contract, Provider shall furnish to the City a fully executed original labor and materialmen's (payment) bond, as prepared by the City and in a form approved by the City Solicitor, in an amount equal to ____ (____) per cent of the total payment amount set forth in Section 5.1 (Amount) above, and having as surety thereon such surety company

or companies as are approved by and acceptable to the City.

15.6 Fidelity Bond.

Provider shall, at its sole cost and expense, obtain and maintain during the Initial Term and any Additional Term(s) of this Contract, a fidelity bond in an amount equal to the greater of (a) Ten Thousand Dollars (\$10,000) or (b) the amount specified in the Provider Agreement, covering Provider's employees who have financial responsibilities related to the receipt and disbursement of funds under this Contract. In lieu of a fidelity bond, Provider may obtain coverage for crime insurance with limits that are the greater of (a) \$10,000 or (b) the amount specified in the Provider Agreement. The fidelity bond or crime insurance, whichever is obtained by Provider, shall name the City as a beneficiary. Evidence of the existence of the fidelity bond or crime insurance shall be submitted to the City prior to the commencement of Services in conformity with the requirements of Section 15.2 (Evidence of Insurance Coverage) above.

**ARTICLE XVI: PATENT, COPYRIGHT AND OTHER
PROPRIETARY RIGHTS INDEMNITY**

16.1 Indemnification.

(a) Provider warrants that all Software, Documentation, Services, and Deliverables do not and will not infringe upon or violate any patent, copyright, trade secret or other proprietary rights of any third party. In the event of any claim, suit or action by any third party against the City, the City shall promptly notify Provider in writing and Provider shall defend such claim, suit or action at Provider's expense, and Provider shall indemnify the City against any loss, cost, damage, expense or liability arising out of such claim, suit or action (including, without limitation, litigation costs and counsel fees) whether or not such claim, suit or action is successful.

(b) Provider will not, however, be responsible for such loss, cost, damage, expense or liability if infringement is finally determined by a court of competent jurisdiction to be the sole result of (1) the City's modification of the Software or its use of the Software in a manner not intended by the Parties or contemplated by this Contract; (2) the City's failure to use corrections or enhancements made available by Provider that do not materially alter the functionality of the Software as it exists at the time furnished; (3) the City's distribution or marketing of the Software to third parties for revenue producing purposes; or (4) the act or omission of the third party supplier of a software product used in combination with Provider's Software but not furnished by Provider under this Contract. Prior to such final determination,

however, Provider shall remain fully responsible, at its expense, for the defense and indemnification of any infringement claim in accordance with this Article XVI; provided, that if the claimed infringement is finally determined to be solely the result of one or more of (1)-(4), the City will reimburse Provider for its reasonable expenses (including reasonable litigation costs and attorneys fees) incurred therein.

16.2 Infringing Software.

If the Software is, or in Provider's reasonable judgment is likely to be, held to constitute an infringing product, Provider shall at its expense and option either: (1) procure the right for the City to continue using the Software, (2) replace the Software with a non-infringing equivalent, (3) modify the Software to make it non-infringing, provided that the modification does not materially alter the functionality of the Software or the City agrees to and accepts the modification in writing; or (4) in the event Provider is ordered by a court of competent jurisdiction to remove the Software, and all right of appeal or stay is exhausted as to such order, accept return of the Software and refund to the City the full amount paid by the City to Provider pursuant to this Contract.

16.3 Exclusive Remedy.

The foregoing remedies constitute the City's sole and exclusive remedies and Provider's entire liability with respect to infringement of proprietary rights. To receive the foregoing indemnity, the City must promptly notify Provider in writing of an infringement claim or suit, provide reasonable cooperation (at Provider's expense), and full authority to Provider to defend or settle the claim or suit. Provider will have no obligation to indemnify the City under any settlement made without its written consent.

16.4 Relationship with Section 8.2 (Indemnification) of the General Provisions.

The indemnification requirements set forth in this Article XVI apply only to the specific subject matter hereof. With respect to any and all other losses, costs (including, but not limited to, litigation and settlement costs and counsel fees), claims, suits, actions, damages, liability and expenses, the requirements set forth in Section 8.2 (Indemnification) of the General Provisions shall apply.

ARTICLE XVII: CONFIDENTIALITY

17.1 Non-Disclosure.

Provider and its employees, agents, Subcontractors, suppliers, and any person or entity acting on its behalf (i) will maintain in strict confidentiality all of the “City Data,” as defined and set forth in Section 17.2; (ii) will not, without the City’s written permission, divulge, disclose, communicate, or distribute any of the City Data to any person or entity except as may be strictly necessary to perform the Contract; (iii) will not, without the City’s written permission, in any way use any of the City Data for their businesses or other advantage or gain (except as may be necessary to perform the Contract), including, without limitation, any use of the City Data in any presentation, demonstration, or proposal to perform work, to the City or to others, that may be conducted or created as part of their business activities or otherwise; (iv) will, immediately upon the City's Final Acceptance of the Services and Deliverables required under the Contract under Article VIII (Acceptance) above, return all City Data to the City, destroy any and all copies of any City Data that are in their possession, whether on paper or in electronic or other form, and if requested by the City in writing, will certify in writing that there has been full compliance with this Section 17.1.

17.2 City Data.

Except as provided otherwise in this Section 17.2, the City Data shall include any and all of the following, whether in electronic, microfilm, microfiche, video, paper, or other form, and any copies or reproductions thereof:

- (a) _____; and
- (b) Any and all other records, documents, and data furnished by the City to Provider in relation to the work required under the Contract; and
- (c) All Deliverables and other work product(s) and items of work created by Provider for the City as part of the work required under the Contract.

The City Data shall not, however, include any information which:

- Was known to Provider, prior to the commencement of its performance of the Contract, free of any obligation to keep it confidential, and/or is proprietary to Provider; or
- Was generally known to the public at the time of receipt by Provider, or becomes generally known to the public through no act or omission of Provider; or

- Was independently developed by Provider without knowledge or use of any City Data; or
- Is required to be disclosed by law or judicial process.

17.3 In the event of any actual or threatened breach of any of the provisions of this Article XVII or Article XIX, and in addition to any other remedies that may be available to the City in law or equity, the City shall be entitled to a restraining order, preliminary injunction, permanent injunction, and/or other appropriate relief to specifically enforce the terms of this Article XVII or Article XIX. Provider agrees that a breach of the terms of this Article XVII or Article XIX would cause the City injury not compensable in monetary damages alone, and that the remedies provided herein are appropriate and reasonable.

ARTICLE XVIII: CENTURY DATE STANDARD

Provider represents and warrants that all Software furnished under the Contract will conform to the following City of Philadelphia Century Date Standard set forth in (a)-(d), below, and shall, at no cost to the City, repair any Software that does not conform to such standards and cause it to conform, or shall replace the Software with software that does conform.

(a) General Integrity. No value for current date will cause interruptions in the operation of the Software by producing any date-related faults or failures and/or inaccurate data.

(b) Date Integrity. All manipulations of time-related data (including, without limitation, dates, durations, days of the week, month, and the year) will produce results that conform to Provider's specifications for the Software for all valid date values within the application domain.

(c) Interface Integrity. Date elements in interfaces and data storage shall permit specification of the century by means that will eliminate all ambiguity as to the applicable century for date and date-related data. For any date element represented without century, the correct century shall be unambiguous for all manipulations involving that element.

(d) Source code. Source code for the Software shall comply with the standard set forth in Federal Information Processing Standard Publication 4-2 (FIPS PUB 4-2), *Representation of Calendar Date for Information Interchange*.

ARTICLE XIX: MISCELLANEOUS PROVISIONS

19.1 Notice. The addresses and email addresses for the City and the Provider are as follows:

IF TO THE CITY:

Attn.: [Name and Title]
[Address]
[Email Address]

IF TO PROVIDER:

Attn.: [Name and/or Title]
[Address]
[Email Address]

19.2 Interpretation; Order of Precedence.

In the event of a conflict or inconsistency between the terms of the Contract, including this Provider Agreement, and any term, condition or provision contained in any Exhibit hereto, or any attachment to such Exhibit (including, without limitation, any proposal of Provider), the order of precedence shall be: (1) the terms of this Provider Agreement; (2) the General Provisions; (3) any or all exhibits attached to the Contract.

19.3 Electronic Signatures.

The Parties agree to conduct this transaction electronically, including the execution of this Contract using the means of electronic signature provided below.

19.4 Data Security.

(a) Information Security Audit Reports. The City reserves the right to require Provider to produce to the City, no more than one time per year, a SSAE 18, SOC 2, Type II Report, and a SSAE SOC 1 audit report (“Audit Reports”) in accordance with the following requirements: (a) the Audit Reports shall include a 365 day (12-month) testing period; and (b) the Provider shall send the City the Audit Reports no longer than thirty (30) days after they are received by Provider.

(b) Data Breach; Loss of City Data. In the event of any Data Breach, act, Software error, omission, negligence, misconduct, or breach that compromises or is suspected to compromise the security, confidentiality, or integrity of City Data or the physical, technical,

administrative, or organizational safeguards put in place by Provider that relate to the protection of the security, confidentiality, or integrity of City Data, Provider shall, as applicable:

- i. Notify City immediately following discovery, but no later than twenty-four (24) hours, of becoming aware of such occurrence or suspected occurrence. Provider's report shall identify:
 - A. the nature of the unauthorized access, use or disclosure;
 - B. the City Data accessed, used or disclosed;
 - C. the person(s) who accessed, used, disclosed and/or received protected information (if known);
 - D. what Provider has done or will do to mitigate any deleterious effect of the unauthorized access, use or disclosure, and
 - E. what corrective action Provider has taken or will take to prevent future unauthorized access, use or disclosure.
- ii. In the event of a suspected Breach, Provider shall keep the City informed regularly of the progress of its investigation until the uncertainty is resolved;
- iii. Provider shall coordinate with the City in its breach response activities including without limitation:
 - A. Immediately preserve any potential forensic evidence relating to the breach, and remedy the breach as quickly as circumstances permit;
 - B. Promptly (within 2 business days) designate a contact person to whom the City will direct inquiries, and who will communicate Provider responses to City inquiries;
 - C. As rapidly as circumstances permit, apply appropriate resources to remedy the breach condition, investigate, document, restore City service(s) as directed by the City, and undertake appropriate response activities;
 - D. Provide status reports to the City on Data Breach response activities, either on a daily basis or a frequency approved by the City;
 - E. Make all reasonable efforts to assist and cooperate with the City in its Breach response efforts;

- F. Ensure that knowledgeable Provider staff are available on short notice, if needed, to participate in City-initiated meetings and/or conference calls regarding the Breach; and
 - G. Cooperate with City in investigating the occurrence, including making available all relevant records, logs, files, data reporting, and other materials required to comply with applicable law or as otherwise required by City.
- iv. Perform or take any other actions required to comply with applicable law as a result of the occurrence;
 - v. Use best efforts to recreate lost City Data in the manner and on the schedule set by City without charge to City; and
 - vi. Provide to City a detailed plan within ten (10) calendar days of the occurrence describing the measures Provider will undertake to prevent a future occurrence.
 - vii. Provider shall retain and preserve City Data in accordance with the City's instruction and requests, including without limitation any retention schedules and/or litigation hold orders provided by the City to Provider, independent of where the City Data is stored.
 - viii. City shall conduct all media communications related to such Data Breach, unless in its sole discretion, City directs Provider to do so.

(c) The data security requirements in this Section 19.5, Data Security, are in addition to and not in lieu of requirement set forth in Section 13.9, "Terms and Conditions Relating to Protected Health Information," of the General Provisions.

19.5 Acknowledgement of the General Provisions.

Provider acknowledges that it has read and understands the terms and conditions contained in the General Provisions and that it is legally bound by all of the terms of this Contract, including those set forth in the General Provisions.

19.6 Survival.

Any and all provisions set forth in this Contract which, by its or their nature, would reasonably be expected to be performed after the termination or expiration of the Contract shall survive and be enforceable after such termination. In addition to, and not in lieu of the foregoing

sentence, Provider specifically agrees that the obligations set forth in this Article XIX and Section 19.4(b) shall survive the termination of the Contract.

[The remainder of this page has been left blank intentionally. Signature page follows.]

IN WITNESS OF THEIR AGREEMENT TO THE PROVISIONS ABOVE, the Parties have caused this Provider Agreement to be executed and delivered by their respective duly authorized officers as of the first date in the preamble of this Provider Agreement.

APPROVED AS TO FORM
RENEE GARCIA, CITY SOLICITOR

THE CITY OF PHILADELPHIA
Through:

Per: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

PROVIDER NAME

By: _____

Name: _____

Title: _____

ATTEST

By: _____

Name: _____

Title: _____

